



PARLIAMENTARY DEBATES

OFFICIAL REPORT

CONTENTS

VOTES AND PROCEEDINGS AND THE OFFICIAL REPORT— [Col. 1]

PAPER—

Report of the Committee on Security and Intelligence on the Security and Intelligence Agencies Bill, 2025 — [Col. 38]

BILLS — FIRST READING

- (a) University of Engineering and Agricultural Sciences Bill, 2025— [Col. 38]
- (b) Human Sexual Rights and Family Values Bill, 2025 — [Col. 39]
- (c) Constitution of the Republic of Ghana (Amendment) Bill, 2025 — [Col. 49]

BILL — CONSIDERATION STAGE

Legal Education Reform Bill, 2025 — [Col. 104]

ORAL ANSWERS TO QUESTIONS —

Ministry for Trade, Agribusiness and Industry — [Col. 9]

STATEMENTS—

- (a) Cocoa Producer Price Reduction – Government must Reverse the Decision with Immediate Effect — [Col. 50]
- (b) Cocoa Sector Reforms for Financial Viability and Long-Term Sustainability — [Col. 53]

ADJOURNMENT— [Col. 178]

Correction of errors of substance may be made only on the floor of the House with the permission of the Speaker. However, correction of typographical or grammatical errors which Members suggest for the Bound Volumes which will be compiled at the end of the Meeting may be clearly marked in the Daily Report, and the copy containing the corrections submitted at the Editor's Office, Parliament House, not later than four clear days after the publication of the Daily Report.

BOUND VOLUMES of the Official Report (each with a comprehensive Index) are issued periodically during the Session. There is no fixed subscription rate, but prices will be quoted on each publication.

*Published by Office of Chamber Reporting,
Parliament House, Accra.*

*Designed and Printed by Publishing Department,
Parliament House, Accra.*

©2026 Parliament of Ghana.

THE
PARLIAMENT OF THE REPUBLIC
OF GHANA

FIRST MEETING, 2026

Tuesday, 17th February, 2026

*The House met at the Chamber,
Parliament House, at 2:44 p.m.*

[THE SPEAKER, RT HON ALBAN
SUMANA KINGSFORD BAGBIN,
IN THE CHAIR]

[PRAYERS]

The Speaker: Hon Members, we would take the item numbered 6 on the *Order Paper*, *Correction of Votes and Proceedings* and the *Official Report*.

**VOTES AND PROCEEDINGS AND
THE OFFICIAL REPORT**

The Speaker: We will start with the *Votes and Proceedings* of Friday, 13th February, 2026.

Page 1...9— Hon Member?

Mr Frank Afriyie: Thank you, Mr Speaker.

Mr Speaker, with respect, on page 9, the item numbered 10, on the very first line, can the word “Papers” be used to replace the word “Paper” in the sentence which reads; “The following Paper were presented.”

The Speaker: Thank you very much.

Table Office, kindly take note.

Page 10...13— Yes, Hon Member?

Nana Osei-Adjei: On the page numbered 13, the number 544— I am a proud Member of Parliament for the good people of New Juaben North and not South. Thank you.

The Speaker: Table Office, take note of that.

Page 14...15.

Hon Members, the *Votes and Proceedings* of Friday, 13th February, 2026, as corrected is hereby adopted as the true record of proceedings.

We would now move on to the item numbered 7. But before we do that, let me acknowledge the presence of some visitors. As usual, we have a number of schools represented at the Public Gallery as visitors here.

The first is Hack Science Technologies. They are 19 in number and they come from two constituencies in the Northern Region: Tamale Central and Tamale South. They are being led by two officers. In the case of Tamale Central, it is by the Chief Executive Officer (CEO), Mr Kelvin Oduro, and in the case of Tamale South, it is by the Public Relations Officer (PRO), Mr Steve Demuyakor.

2:54 p.m.

Hon Members, on your behalf, I want to warmly welcome them to the House;

the House of the people. I want to thank you so much for bringing these students not only to see, but also to experience what we do here. I hope you will take advantage of it and learn more, so that in the future, when you are here, you will perform far better than what we are doing.

So, you are warmly welcome. Please, you can kindly resume your seats.

[Representatives from Hack Science Technologies were acknowledged.]

The Speaker: The second group is from the Effutu Constituency. They are from the Ntarkofam Basic School. They are led by their teacher, Mr Sena Bosson. I am told they are 128 in number, and I think they are to the right of the Speaker. I want to also warmly welcome them to the House. One hundred and twenty-eight is quite a large number. Congratulations on the investment. Please, you may resume your seats.

[Pupils from the Ntarkofam Basic School were acknowledged.]

The Speaker: The third group is from Weija-Gbawe Constituency. They are 11 in number and are from the Westfield Bridge College. They are led by their teacher, Mr Martin Osei. They are also to the right of The Speaker. On behalf of the House, I warmly welcome you to your Parliament, your House. Please, as I stated earlier, I want you to take advantage of this opportunity to learn, so that in the future, you can be better than what we are today.

Kindly also resume your seats.

[Students from the Westfield Bridge College were acknowledged.]

The Speaker: We can now proceed to the item numbered 7, which is Questions.

Yes, Hon Majority Leader?

Mr Mahama Ayariga: Mr Speaker, the Minister for Trade, Agribusiness and Industry, who is scheduled to answer the Questions, is not readily in the House. So, could you indulge me, Mr Speaker, so that we can vary the order of Business and take the item numbered 10, Presentation and First Reading of Bills, while I try to reach the Minister— She is here now.

The Speaker: Where is she? Are you listening to yourselves? Some are saying she is here and others are saying she is coming.

Mr Ayariga: So, Mr Speaker, I think we are trying to reach her on phone. Apparently, she is in the building and would be in, so we can take the item numbered 7.

The Speaker: So, we take item —

Yes?

Alhaji Habib Iddrisu: Mr Speaker, the Minister for Trade, Agribusiness and Industry, at the time you called for the Question time, was not in the Chamber. So, it cannot be the case that she was here. The Minister must know

that Parliament starts at a certain time, and she has Questions, and she has full knowledge about that. She is not to come at her will and time; no.

This is Parliamentary Business, and she must appear here to answer Questions on time and not as and when she wants. The Questions admitted were transmitted to the Ministry. There was a response and she had ample opportunity and time to answer the Questions. Parliament adjourned and we gave the time that we were supposed to sit.

So, the Minister should have been aware that she had to be in Parliament at a particular time. Even though the Speaker delayed Sitting and he is now asking of the Minister, she is now walking through the corridors majestically into the Chamber.

So, Mr Speaker, we can take the item numbered 10(a).

The Speaker: Yes, Hon Majority Chief Whip?

Mr Rockson-Nelson Etse Kwami Dafeamekpor: Mr Speaker, indeed, when proceedings commenced, it did with the prayer. Then, you varied the order of Business and took the Correction of *Votes and Proceedings*. The Minister has been here. Why would he want to create the impression that the Minister was now sauntering into the Chamber? Mr Speaker, that is not the truth. So, he should stop insisting on that. It is not appropriate. We will not tolerate this. Anytime they have the opportunity,

they want to go after our Ministers. They should not peddle falsehoods against the Minister of State.

Mr Speaker, with all due respect, the Minister has been here. She only stepped out during the correction of *Votes and Proceedings* and the *Official Report*. So, when you indicated that we take Questions, she came in. They should not paint the picture that the Minister came to Parliament at her own time and choosing. We, the Majority, would not tolerate that. It has to stop.

Alhaji Habib Iddrisu: Mr Speaker, Parliament is a House of records.

Mr Speaker, in the first instance, we did not vary any order of Business today. After the Correction of *Votes and Proceedings and the Official Report*, the next thing was Questions.

Mr Speaker, when you called for Questions, I was not the one who said the Minister was not available. The Hon Majority Leader and the Leader of Government Business said the Minister was not available, and then our Colleagues saw her behind us and said she was here. So, if the Hon Majority Chief Whip has an issue, the Majority Leader spoke and said the Minister was not available. Those are not my words. However, she was seen walking through the corridor. The Speaker then drew our attention that when we said that, was she present or not, which one was it?

The Minister was not seated at the time the Hon Majority Leader was making the application for us to vary the

order of Business to take the item numbered 10(a). So, they cannot say they would not take it. If they do not want to take anything, then they should bring their Ministers because we will not also take the fact that their Ministers are not here.

Mr Ayariga: Mr Speaker, if I may be heard.

The Speaker: Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, all this is needless. If he is getting that kind of reaction from my Chief Whip, it is because he has made it a habit to raise issues that do not exist. Because if you look at the time within which the Minister entered the Chamber from their Side, and when the Speaker asked if we should take the item numbered 7, it was barely four or five minutes.

If the Minister were not in the building, how could she immediately appear in the Chamber? So, he did not have to go on the tangent of trying to take her on some flimsy allegation that she does not attend Parliament. No, that was the impression he was creating. That was what he suggested. So, I think the attitude and the suggestion that she does not respect Parliament was totally needless.

Luckily, she is here, and it was within a few minutes from when we got to that item. So, I was just trying to vary the order of Business because I knew she was around, and I just could not reach her on her phone. Yes, I said she was around,

and I was trying to reach her on her phone. And then the Hon Majority Chief Whip stepped out to look for her. So, what you said was needless, especially to our Colleague who is a Minister of State and who has come in within five minutes of when we were looking for her.

So, we were expecting that he would be a little more charitable on this occasion, but it looks like charity is not part of his vocabulary.

3:04 p.m.

The Speaker: Yes, Hon Members, let us take the item numbered 7, which is Questions.

I hope you also reflect that the Chairperson of the Public Accounts Committee is comfortably seated by you. You do not show that aspect of you to the public. You are only telling them that you would not tolerate it, meanwhile, you are tolerating each other. She is seated there having a nice conversation with the Hon Majority Leader. Please let the public know that these exchanges are just meant for the game; you do not take them at heart. You are not at each other's throat, or else the grassroots will misunderstand your theatrics and then you start having crises and wars. Please, do not exhibit only that. Let us see the other aspect of you.

Hon Minister, let us go on. I think the first Question stands in the name of Dr Isaac Yaw Opoku, the Member of Parliament for Offinso South. Please, Hon Member, you may ask your Question now.

ORAL ANSWERS TO QUESTIONS

MINISTRY OF TRADE, AGRIBUSINESS AND INDUSTRY

Status of the Komenda Sugar Factory

Dr Isaac Yaw Opoku (NPP — Offinso South): Mr Speaker, I beg to ask the Minister for Trade, Agribusiness and Industry the status of the Komenda Sugar Factory.

Minister for Trade, Agribusiness and Industry (Mrs Elizabeth Ofosu-Adjare) (MP): Thank you Mr Speaker for the opportunity. Mr Speaker, the Komenda Sugar Factory was commissioned in 2016, as part of a broad national vision to develop self-sustaining agro-industrial zones. However, the strategic value of the factory has been undermined by lack of capital investment, poor maintenance, deteriorating infrastructure and raw material supply-side weaknesses.

The factory was constructed as a strategic asset with the capacity of 1,250MT/day of sugarcane processing, and to produce between 112MT to 150MT of refined sugar daily. At optimal operations, the factory was to provide 80,000 direct and indirect jobs, serve as a strategic socio-economic asset for the people of Komenda, Central Region and Ghana as a whole; and become a state-led agro-industrial enclave for sugarcane.

Mr Speaker, Despite the potential contribution of the factory to national

development, technical and operational deficiencies have prevented the factory from running at full capacity. The machinery and equipment of the factory have not been refurbished since construction in 2016. Equipment, generators and motors need maintenance and boiler top coil needs replacement to bring the factory back to life. Moreover, the factory has been disconnected from the National Grid by Electricity Company of Ghana and water supply by Ghana Water Company Limited due to unpaid bills.

Added to the poor state of the equipment, the facility has accumulated significant debt. Further, operationalisation of the factory has also been hindered by the lack of raw materials. The farming community which was expected to anchor the raw material supply remains disengaged due to lack of institutional support and unclear procurement channels.

Mr Speaker, when I took office this year, I visited Komenda to engage with the chiefs and people, Member of Parliament, local authorities, farmers and other stakeholders. As a result of the visit, a report submitted to Government, and an Interim Management Committee (IMC) was constituted to:

- i. Conduct a thorough technical assessment of the factory's assets, including installed equipment, machinery, production lines, and auxiliary facilities, and assess existing liabilities.

- ii. Undertake a comprehensive review of the factory's financial position and assess its business viability to include an indicative estimate of the human resources and capital investments required for its successful turnaround.
- iii. Conduct an integrated assessment of the raw material supply chain, including land availability, out-grower potential logistics and partnerships. The committee is to make proposals for a sustainable raw material supply model for efficient production.
- iv. Propose a roadmap to guide the smooth transition of the factory from the status into an operational factory, ensuring institutional, regulatory and logistical readiness.

Mr Speaker, The IMC has generated an interim report. Currently, the Committee is working to submit a comprehensive report on the status of the factory. Given the importance Government attaches to the factory, the Ministry has prioritised the engagement of a Transaction Advisor to package the factory and secure a strategic investor to operationalise the factory and farms in the 2026 Budget.

Dr I. Y. Opoku: Mr Speaker, as the Hon Minister said, the project was commissioned in 2016. So, it is about ten years old now. I want to find out whether there are any timelines as to when the factory would start full operation.

Mrs Ofosu-Adjare: Thank you, Mr Speaker for that Question. As I indicated earlier, a transactional advisor is being procured. I am sure as soon as that is done, the strategic investor will also be sorted and the factory will come on stream. I can assure the Hon Member that we are working expeditiously to ensure that the Komenda Sugar Factory comes on stream again. Thank you.

Dr I. Y. Opoku: Mr Speaker, I want to find out whether the outgrowers have started sugarcane production as we speak.

Mrs Ofosu-Adjare: Mr Speaker, fortunately, the Ministry of Trade, Industry and Agribusiness is embarking on the Feed the Industry programme. We have secured land, thanks to the chief of Komenda, and very soon, when we get the private sector operator, they will tell us the kind of sugarcane that they will need for the factory, and same will be done. We will do backwards integration, so they can start the production and then later get the sugarcane. Thank you very much.

Dr I. Y. Opoku: Mr Speaker, I am grateful.

The Speaker: Thank you so much. We will move to the second Question.

Some Hon Members — *rose* —

The Speaker: Yes, Former Minister for the Western Region?

Mr Kwabena Okyere Darko-Mensah: Mr Speaker, I would like to know from the Minister for Trade, Agribusiness and Industry whether the factory has ever produced sugar, the number of tonnes of sugar, and where they get their sugarcane from?

Mrs Ofosu-Adjare: Mr Speaker, yes, the Komenda Sugar Factory has ever produced sugar, but I cannot give him the figures. If the Hon Member asks me for figures, I will provide. Thank you very much.

Mr Michael Baafi Okyere: Mr Speaker, I would like to ask the Hon Minister whether the management of the factory is under the supervision of the Ministry or a private operator?

3:14 p.m.

Mrs Ofosu-Adjare: Mr Speaker, as I speak to, the factory is not under any operation.

It would be recalled that this factory has not worked for so many years, but the Ministry supervises it. That is why we are working very hard to operationalise it.

Mr John Abdulai Jinapor: Mr Speaker, given that the Minister talked about non-payment of electricity bills, which started from 2017 through to 2020, culminating in the curtailment of electricity to the factory, leading to huge unpaid bills, I want to enquire from the Minister what plan she has to ensure that all those huge accumulated bills that she

inherited are settled to enable the factory to kickstart.

Mrs Ofosu-Adjare: Mr Speaker, as I indicated earlier, the factory has accumulated electricity bills and that is worrisome. I inherited same when I took office last year. When we have the Transaction Advisor and the Private Sector Operator, it will be part of the cost of the plant. So, all of that will be taken care of. I can assure the Minister for Energy and Green Transition that even when we bring this plant on stream, the inherited debts relative to the electricity bill will be sorted out.

Nana Osei-Adjei: Mr Speaker, I would like to find out from the Minister the terms of reference of the Transaction Advisor.

The Speaker: Hon Member, I do not know where this supplementary question is coming from. The sentence says, “Given the importance Government attaches to the factory, the Ministry has prioritised the engagement of a Transaction Advisor to package the factory...”. So, they have not yet engaged. They have prioritised to engage and you are already asking for the terms of reference?

Nana Osei-Adjei: I would like to know the scope of work of the Transaction Advisor.

Mrs Ofosu-Adjare: Respectfully, if we get the authorisation from the Ministry of Finance, we will draft one for the Transaction Advisor. But it is

obvious that we have not procured one, and so its terms are not ready.

Mr Vincent Ekow Assafuah: Mr Speaker, last year when the 2026 Budget Statement and Economic Policy was read, sugarcane farmers were up in arms with the Government over their lack of commitment with respect to the Government's commitment in reviving the factory. When we check the last paragraph of the answer from the Minister, she claims that,

“Given the importance Government attaches to the factory, the Ministry has prioritised the engagement of a Transaction Advisor to package the factory and secure a strategic investor to operationalise the factory and farms in the 2026 Budget.”

As I said, in the 2026 Budget, nowhere was the revival of the Komenda factory ever mentioned. So, I want to find out from the Minister how she seeks to deal with that commitment as she is claiming that in the 2026 Budget it was mentioned.

Mrs Ofosu-Adjare: If the Hon Member had said that he has not seen it, I would have appreciated it more. But for his information, the 2026 Budget Statement and Economic Policy made mention of the Komenda Sugar Factory. What is more, the people of Komenda are not up in arms; sugarcane growers are not up in arms. I have indicated that they are rather excited because for the past eight years they were not engaged. But when I assumed office as Ghana's Minister for Trade,

Agribusiness and Industry, I engaged them. So, they know that very soon they will get the opportunity to grow sugarcane for the Komenda Sugar Factory.

So, there is nothing like them being up in arms and there is a provision for Komenda Sugar Factory in the 2026 Budget.

The Speaker: Hon Members, may we move on to the next Question. The next Question stands in the name of the Hon Member for New Juaben South, Hon Michael Okyere Baafi.

Status of Vehicle Component Manufacturing Policy

Mr Michael Okyere-Baafi (NPP — New Juaben South): Mr Speaker, I beg to ask the Minister for Trade, Agribusiness and Industry the status of the vehicle component manufacturing policy.

Mrs Ofosu-Adjare: Mr Speaker, as part of the implementation of the Government's Industrial Transformation Agenda, the Automotive industry has been identified as a strategic industry. To harness the multiplier effect in developing the automotive industry, the Government has drafted the Ghana Automotive Component Manufacturing Development Policy (GACMP) to attract investments from Component Manufacturers to feed into the local automotive industry whilst supplying aftermarket component across the sub-region.

Globally, the Automotive Component Manufacturing Industry is universally

recognised as a key strategic sector for stimulating multiplier effects in terms of industrial transformation, and as a powerful driver of employment, foreign investment, innovation and economic growth, contributing directly and indirectly to GDP. Established automotive production locations typically have automotive component employment levels two to three times that of vehicle assemblers.

Mr Speaker, the draft Policy provides a structured framework to attract local and foreign investment into the manufacturing of components, parts, and accessories, while strengthening standards, skills, infrastructure, and market access to position Ghana as a regional automotive hub.

The fundamental principle underlying the Policy is that the private sector is the engine of future growth, with Government providing an enabling environment designed for automotive component manufacturing to thrive over the long term.

Mr Speaker, the Policy has also been shared specifically with the Ministries of Finance; Land and Natural Resources; Youth Development and Empowerment; Energy and Green Transition and, Transport to solicit further comments for incorporation.

In the coming days, I will be discussing with my colleague Hon Cassiel Ato Baah Forson, Minister for Finance, the alignment of the policy's incentive measures with the Government

current incentive regime to pave way for the submission of the Draft Policy Document to Cabinet for consideration and approval.

3:24 p.m.

This would be followed by the necessary legislative amendments for full implementation. Mr Speaker, in conclusion, the Ghana Automotive Component Manufacturing Policy presents a major opportunity to deepen industrialisation, expand exports, create skilled jobs, integrate SMEs, and position Ghana as the automotive hub of West Africa under AfCFTA. Parliamentary oversight and support will be essential to anchor the fiscal, regulatory, and institutional reforms required to operationalise this strategic national programme.

The Speaker: Hon Member, any supplementary questions?

Mr Baafi: Mr Speaker, I would like the Minister to tell us whether there are incentives available for manufacturers of components in the document? Thank you.

Mrs Ofosu-Adjare: Mr Speaker, I indicated that the incentives that have been recommended will have to be discussed with the Minister for Finance, after which I can make same public. I thank you very much.

Mr Baafi: I would like to know from the Minister whether craftsmen in enclaves like Kokompe have a place in the policy.

Mrs Ofosu-Adjare: The answer is yes.

Mr Baafi: Mr Speaker, I guess there is a need for research and development, which must be a key ingredient in the whole policy framework. So, I would like to know from the Minister whether she has any plans like that, and if she can specifically mention some of the things she has done so far to link industry to academia by getting research and development arrangements in the policy.

Mrs Ofosu-Adjare: Mr Speaker, I am happy to inform the Hon Member that there is a component for research and development, which is very key in any policy that we draft, and he knows that already. Thank you.

Dr Fred Kyei Asamoah: Thank you very much, Mr Speaker. When the Hon Minister was responding, she mentioned specifically sharing the document with the Ministry of Finance, the Ministry of Lands and Natural Resources, the Ministry of Youth Development and Empowerment, the Ministry of Energy and Green Transition, and the Ministry of Transport to solicit further comment for incorporation.

Mr Speaker, we all know that the automotive policy can work well. Especially with the advent of electric vehicles, we need a skilled workforce to make it thrive. So, what has been the role or contribution of the Ministry of Education, which is a critical aspect of such a policy, since these are the Ministries she mentioned, and has shared the document with?

Mrs Ofosu-Adjare: Mr Speaker, the Policy is in its draft stage, so we will continue to engage as many stakeholders as possible in the process. Thank you very much.

Mr Assafuah: Mr Speaker, let me commend the Minister on the plan of the Government to give incentives to people who are interested in such manufacturing processes. However, I wanted to give a clear-cut distinction between the kind of investment that will be given to local manufacturers. Sometimes, it is proper that we are intentional about such incentives because if we do not take care, and give general incentives, we might end up supporting foreign investors rather. So, is she going to be intentional about the incentives that are supposed to be given to local manufacturers? Thank you.

Mrs Ofosu-Adjare: Mr Speaker, the Ministry of Trade, Agribusiness and Industry is committed to ensuring local participation in all the investments that we do in this country. As much as we look for foreign direct investment, we want to help people invest in the space. This will continue to create the enabling environment for our people to take advantage of the policy. Thank you.

The Speaker: Hon Members, we move to the next Question; the Question numbered 316. It stands in the name of the Hon Member for Kwadaso Constituency, Prof Kingsley Nyarko. Please, Hon Member, you may ask your Question.

Domestic Production, Export Volumes and Value Addition Interventions

Prof Kingsley Nyarko (NPP — Kwadaso): Thank you very much, Mr Speaker. I rise to ask the Minister for Trade, Agribusiness and Industry the specific interventions the Ministry has taken to stimulate domestic production, increase export volumes and add value to our products to boost trade earnings.

Mrs Ofosu-Adjare: Mr Speaker, under Government's agenda to reset Ghana's economic development, the Ministry of Trade, Agribusiness, and Industry is implementing an Accelerated Export Development Programme (AEDP) to support export-oriented enterprises, especially those in the Non-Traditional Sector to grow in scale by expanding production for existing markets and to penetrate new markets with High Value-added Products (HVPs). Specific initiatives undertaken include:

- i. The procurement and distribution of 211,606 coconut seedlings to farmers in the Volta, Eastern, Central, Western, and Ashanti Regions to diversify export product lines. Farmers in other regions will be considered in the second phase of distribution.
- ii. The Ministry, through its agencies, has also supported 79 enterprises to participate in various international fairs in countries such as China, Germany and Italy to exhibit their products. Through

participation in the exhibitions, the enterprises have secured orders to the tune of US\$325 million and €2.7 million.

- iii. Ghana Export Promotion Authority (GEPA) Export School has trained 62 Small and Medium Enterprises in export market intelligence, export financing, market access requirements and trade logistics to enhance the capacity of local enterprises to compete in the export market.
- iv. GEPA has also provided advisory services to 850 MSMEs on market penetration, attractiveness, export trade protocols, and other export-related information.
- v. To facilitate export, the Ghana Free Zones Authority has fully deployed a single window platform for free zone enterprises to expedite the export processing system and provide seamless export trade. Additionally, 27 free zone enterprises were registered to participate in the AfCFTA market.
- vi. As part of the practical measures to be compliant with EU standards, leverage the market opportunities and maintain the competitiveness of Ghanaian products, the Ghana Standards Authority inspected 1,279 export consignments, fishing establishments, and frozen vessels.
- vii. To enhance our export competitiveness and in response to the challenges faced by exporters

in meeting the 60-day repatriation deadline under the Bank of Ghana's Letter of Commitment (LOC) policy.

3:34 p.m.

The Ministry engaged the Bank of Ghana to review and address the relevant policy constraints. Through the Ministry's engagement with Bank of Ghana, extension has been secured for the expiry tenure of the Letter of Commitment required for the repatriation of export proceeds from 60 to 120 days. This allows Ghanaian exporters to be more competitive, improve buyer relationships and offer favourable terms of payment, while maintaining regulatory compliance.

Mr Speaker, the Ministry is leveraging existing preferential trade agreements to expand the country's export market and product diversification through the implementation of the African Continental Free Trade Area (AfCFTA) Agreement. Under AfCFTA, the Ministry has organised two regional dialogues in Central and Volta Regions to enhance medium, small and micro enterprise (MSME) participation in AfCFTA as part of the AfCFTA NCO/ UNDP Cooperation Project for Women and Youth-Led (MSMEs). To ensure consumer safety, enhance quality and improve the competitiveness of made-in-Ghana products, the Ghana Standards Authority improved its certification scheme and certified 278 locally manufactured products. Ghana Standards Authority has also issued 1,172 export

and health certificates to ensure product quality assurance and improve exports.

Mr Speaker, added to initiatives under the Accelerated Export Development Programme (AEDP), the Ghana Exim Bank is currently conducting assessment on companies that received initial funds for construction, procurement of machinery and installation, but struggling to start operations due to lack of adequate working capital or raw materials. The objective is to consider them for extension of credit lines. This is to ensure the smooth operationalisation of their businesses to enhance local production.

Mr Speaker, the Ministry is also implementing Feed the Industry under Ghana FIRST initiative to enhance competitiveness and sustainability of Ghana's agro-processing industries through integrated agricultural value chains that ensure consistent supply of quality raw materials. Feed the Industry is designed to boost production of local raw materials under commercial contract farming to ensure a consistent and sufficient supply of high-quality agricultural produce for industrial use.

Under the initiative, over 40,000 acres of land has been earmarked by the Yeji Traditional Council to promote large scale commercial contract farming. In addition, Government has prohibited the export of raw rubber and non-ferrous scrap metal to secure raw materials for processing by local factories.

Mr Speaker, in conclusion, I reaffirm that these multifaceted interventions spanning domestic production, export

expansion, and value addition remain central to our vision of building a resilient and inclusive export-led economy.

Thank you, Mr Speaker.

The Speaker: Yes, Hon Member, any supplementary question?

Prof Nyarko: Mr Speaker, I must admit that the Answer has been a bit comprehensive. But I want to find out from the Hon Minister the criteria that was used to distribute the coconut seedlings to the five Regions, and when she is going to distribute the seedlings to the 11 outstanding Regions? That would be my first supplementary question, Mr Speaker.

The Speaker: Yes, Hon Minister?
[Pause]

Mrs Ofosu-Adjare: Thank you very much, Mr Speaker.

Mr Speaker, as I indicated, the procurement and distribution of the 211,606 coconut seedlings to farmers in the aforementioned Regions was done by the Ghana Export Promotion Authority (GEPA), and so I would not readily know the mechanism by which they distributed the seedlings. But I am happy to find that out and communicate it to you. The rest will be done this year. They are waiting for the commitment authorisation. As he may be aware, under the administration of His Excellency John Dramani Mahama, one cannot procure until we get a commitment authorisation letter from the Ministry of

Finance to ensure that everything that the Ministry is procuring is budgeted for. And so, immediately the Ministry of Finance makes the commitment authorisation available, the processes for procurement will start, and then we will continue thereafter.

Thank you very much, Mr Speaker.

The Speaker: Yes, Hon Member?

Prof Nyarko: Mr Speaker, I am grateful to the Hon Minister for assuring the House that we will be duly furnished with the criteria. I am grateful.

My second supplementary question has to do with the Hon Minister's indication in the responses that the Ministry has supported some enterprises to visit some countries in the form of exhibitions, and that we have secured US\$325 million and €2.7 million. I would like to find out from her whether these moneys are readily available now and how these moneys are going to be used to the benefit of the country.

Thank you.

The Speaker: Yes, Hon Minister?

Mrs Ofosu-Adjare: Thank you, Mr Speaker, for the opportunity.

This is private sector money. It is not government money. We, are not going to utilise it. The private sector that we facilitate—public sector-led, private sector-driven; we lead for the private

sector to make the money and make the economy strong.

Thank you very much.

The Speaker: Hon Member, you have exhausted your supplementary questions.

Prof Nyarko: Mr Speaker, you know you are my father. *[Laughter]*

My question to her was whether the moneys are in, and whether the moneys are with Government or with the private sector. That was the question.

Granted my last question is— The essence of the question was not only about the exploitation of our produce, but rather value addition. How intentional has the Ministry been in terms of establishing processing factories to promote this value addition to earn foreign exchange?

Thank you.

The Speaker: Yes, Hon Minister?

Mrs Ofosu-Adjare: Mr Speaker, I thank the Hon Member for the opportunity given me to say the things I wanted to chip in the last time but did not get the opportunity.

The Ministry of Trade, Agribusiness and Industry has established seven factories for value addition with support from the Ministry of Finance and the International Fund for Agricultural Development (IFAD). They include a cashew factory, two cassava factories, poultry, and maize. This year, the

Ministry is coming up with two cashew factories. Cabinet approved the construction of two cashew factories, one in Bono East and another in Bono Region to be financed by Ghana EXIM Bank.

The Government of His Excellency John Dramani Mahama is up and doing in value addition.

3:44 p.m.

So, this year, apart from these two, there will be five more factories in Ghana at various locations. I thank you very much for the opportunity.

The Speaker: Yes, Hon Member? That will be the last one. We will move to the last Question after this.

Mr Assafuah: Thank you, Mr Speaker. Let me commend the instrumentality of the Minister for Trade, Agribusiness and Industry for her response, except to ask that per the Answers that she gave, she claims that she supported about 79 enterprises in China and Germany to embark on some exhibitions. And by way of the exhibitions, they had orders for about US\$325 million and €2.75 million. I want to find out how much was realised in exports as she claims that because of those exhibitions, she had about US\$325 million in orders. I want to find out how much has been realised in exports based on those orders, and how much has also been repatriated into the country as foreign exchange?

Mrs Ofosu-Adjare: Mr Speaker, the orders secured are orders for exports but I will not be able to tell you how much of the money has been repatriated. But I can say for a fact how much exports we helped them secure. If he wants that, he can respectfully require of me and I will respond.

Thank you very much.

The Speaker: Hon Members, we will move on to the last Question. Hon Minority Leader?

Osahen Alexander Kwamena Afenyo-Markin: Mr Speaker, I noticed that anytime the Hon Minister is asked a supplementary question, she gives a yes or no answer. Mr Speaker, the Hon Minister must know that she is not in the witness box. She is not responding to a cross-examination question. This is a House of Parliament and the Hon Minister must be elaborative and explain the issue. This is a matter that the public is interested in. Mr Speaker, that said, I would want to know from the Minister, she says that some seven factories are being constructed. May I know what incentives the Government has in place for these factories? Because we are aware that since the One District One Factory (1D1F) policy was cancelled, there is no policy alternative to support the private sector. There was no growth in industry the whole of last year. So, Mr Speaker, she should explain to this House the incentives that Government has put in place to support the private sector. Mr Speaker, that is the question.

3:48 — [HON FIRST DEPUTY SPEAKER, MR BERNARD AHIAFOR, IN THE CHAIR]

Mr First Deputy Speaker: Yes, Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, I rise in pursuance of Order 89(3). Mr Speaker, with your leave, it states:

“Any other Member may be allowed to ask not more than two Supplementary Questions except that the Majority and Minority Leaders or co-leaders may each ask not more than five Supplementary Questions on the substantive Question.”

Mr Speaker, the Minority Leader in asking a supplementary question sought to ask rhetorical questions, suggesting that the Minister does not know how to answer questions to the extent that he said, the Minister said “I do not know.” And she never said anything like that. Second, he intimated that the Minister should be elaborative in answering questions. Our rules do not suggest any such thing in answering questions. The Hon Leader may not like how the Minister has answered the question, but he cannot tell the Minister that she is not responding under cross-examination. So, Mr Speaker, with all due respect, the manner that the Minority Leader sought to ask his supplementary question is untenable within the rules.

Mr First Deputy Speaker: Hon Minority Leader, because I was signaled to take over from the Speaker, I did not

listen to your question. May you please repeat your question?

Osahen Afenyo-Markin: Mr Speaker, with respect, the Hon Minister in an earlier answer said the Government is establishing seven factories, including some cashew factories in Bono East and the Bono Region. So, Mr Speaker, what I want to know from the Hon Minister is that what incentives has the Government put in place in view of the fact that the 1D1F policy, which was to allow for tax exemption to enable these factories import raw materials and machinery at a cheaper cost and to produce cheaper and expand their business and employ more, has been abolished?

Mr First Deputy Speaker: Hon Minority Leader, you know issues in relation to cancellation or otherwise of 1D1F cannot emanate from the question or the answer that you have quoted. I will allow the Minister to answer the question limited to any incentives available.

Mrs Ofosu-Adjare: Thank you very much, Mr Speaker. Since he is the Minority Leader, he had the opportunity to ask two questions. The first one was the fact that my answers were very short, which I respectfully state that as a good law student, I answer questions the way they are asked.

When the questioner asked whether the private people will have the opportunity to participate, the answer was yes, and I did not have to add anything more. So, it is not as if I evade questions or I do not know an answer to a question, but I answer questions as they

are asked, and I do not tell people in asking their questions. So, you have to elicit from me what you want. I do not second-guess people. If you ask a simple question, I give a simple answer. Thank you.

And then on the cashew production, fortunately, they did not need tax waivers from individuals, because this is International Fund for Agricultural Development (IFAD), and IFAD already has tax waivers, and so when IFAD purchased the machines for the cashew, the tax waivers were already there, so they had the opportunity to use that which they have been given. Thank you very much.

3:54 p.m.

Osahen Afenyo-Markin: Mr Speaker, may I know from the Minister if these seven factories she refers to are being fully funded by the private sector or by the State? If so, what are the amounts involved?

Mr First Deputy Speaker: Hon Minister, you can answer the question related to whether it is funded by the state or private sector. But regarding the amount involved, the Minority Leader should file a separate Question.

Mrs Ofosu-Adjare: I am extremely grateful, Mr Speaker.

Mr Speaker, the factories are funded by two groups, the Ministry of Finance and then International Fund and Agricultural Development (IFAD).

There is no private sector contribution, except that it will be run by the private sector. So, Mr Speaker, there is no—*[Interruption]* Yes, IFAD—

Mr First Deputy Speaker: Please, you are not to answer anybody from the periphery. You answer the question and address the Chair.

Mrs Ofosu-Adjare: Mr Speaker, the factories are financed by the Ministry of Finance and IFAD. There is no private sector contribution, thank you.

Mr First Deputy Speaker: Yes?

Osahen Afenyo-Markin: Mr Speaker, from what the Minister has just told this House, I want to know from her, whether these private companies that are going to manage public-funded factories have already shown experience or they are completely new start-ups?

Because from the explanation, it appears to me that Government is funded—

Mr First Deputy Speaker: Please, Minority Leader, you are to ask a supplementary question but not to tell a story.

Osahen Afenyo-Markin: Mr Speaker, with respect, you always want us to extend courtesy to you, but your words are harsh and when we turn back to you, then you say we are not extending courtesy.

Mr First Deputy Speaker: Yes, because you have asked your

supplementary question, so the Minister must answer.

Osahen Afenyo-Markin: Mr Speaker, you do not use such words on your Leader. Let me return back that respect to you. Please, I beg you—

Mr First Deputy Speaker: Ask a supplementary question with all due respect.

Osahen Afenyo-Markin: Mr Speaker, I will, but the language from the Chair might be such that we can all cooperate. I beg you.

Mr First Deputy Speaker: Very well. Ask a supplementary question.

Osahen Afenyo-Markin: Mr Speaker, my question to my respected Colleague, the Minister is that, since this funding is 100 per cent from the State and being run by the private sector, according to her, I want to know whether these private sector entities have shown any experience prior to being granted that access or they are new start-ups?

Mr First Deputy Speaker: Yes, Hon Minister?

Mrs Ofosu-Adjare: Mr Speaker, fortunately, they have not been selected. What happens is that, we engage in an open tender for people to take the bid, show what they have and have done, their competence and all of that. Thereafter, through proper tendering they will be selected.

Mr First Deputy Speaker: Yes, which question number is that?

Osahen Afenyo-Markin: Mr Speaker, it is always important for clarity. Now, from what the Minister has just said, it means that these factories have not been set up at all.

Mr First Deputy Speaker: You see, it is to avoid what is happening, that is why I will urge you to ask a supplementary question.

Osahen Afenyo-Markin: Mr Speaker, I am doing exactly so.

Mr First Deputy Speaker: Yes, but look at what is happening between you and the Minister.

Osahen Afenyo-Markin: What I want to know from the Minister, simply, is that when does she hope to complete this process for the factory to be in full operation?

Mrs Ofosu-Adjare: Thank you, Mr Speaker. I am sure if we give ourselves the next eight weeks, we should be able to do that.

Mr First Deputy Speaker: Yes, Majority Leader? Hon Majority Chief Whip, I saw the Majority Leader earlier on his feet.

Mr Mahama Ayariga: Yes, Mr Speaker. I just wanted to caution my Colleague, the Minority Leader—*[Interruption]* Yes, caution; I used the word caution.

Mr First Deputy Speaker: Order! Order!

Mr Ayariga: Mr Speaker, unfortunately, my Friend who attended Fufulso Primary School is not here to assist him. He would have told him that if he just Googles the word caution, he would find out that the word “caution” is not an offensive word at all.

So please, I just want to draw his attention that when he has disagreements with a decision of the Speaker, his approach and the way that he tries to take on a Speaker in the Chair, is sometimes not the best. He can have issues and take his time and raise the issues with the Speaker. The Speaker may review his decision, but the manner in which he was taking Mr First Deputy Speaker on is what I want to caution him on.

Next time he should not do it that way, especially since we are live on television and everybody is watching us. I just want us to be cautious.

Mr First Deputy Speaker: We will now move to the Question numbered 401, standing in the name of Lawrence Agyinsam, the Member of Parliament from Hemang-Lower Denkyira. You have the floor.

Alhaji Habib Iddrisu: Yes, Mr Speaker, the one asking the Question is not here and he has not authorised anybody to ask the Question on his behalf.

Mr First Deputy Speaker: Very well. I will direct that the published Answer be transmitted to the Hon Member.

Hon Minister, we sincerely thank you for appearing before the House and responding to all your Questions. You are accordingly discharged. Question time has ended.

Majority Leader, any indication?

Mr Ayariga: Yes, Mr Speaker, if we can take the item numbered 9, Presentation of Papers.

I was asking if we can vary the order of Business and move to the item numbered 9. So, we can lay the Report of the Committee on Security and Intelligence on the Security and Intelligence Agency's Bill.

Mr First Deputy Speaker: The application is to vary the order of Business. Yes, First Deputy Minority Whip?

Alhaji Habib Iddrisu: Mr Speaker, no problem. I am a member of the Committee, so my Chairperson, as colourful as she is looking—

Mr First Deputy Speaker: Hon Members, the request that has been agreed to is to vary the order of Business to take the item numbered 9.

At the commencement of public Business, Presentation of Papers, the item numbered 9. Chairperson of the Committee?

4:04 p.m.

PAPER

By the Chairperson of the Committee—

Report of the Committee on Security and Intelligence on the Security and Intelligence Agencies Bill, 2025.

Mr First Deputy Speaker: Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, let us take the item numbered 10. The Minister for Education, for reasons that we all know, is unavoidably absent. So, if we agree to take the item number 10(a), I will crave your indulgence for the Minister for Energy and Green Transition, who is here, to lay the University of Engineering and Agricultural Sciences Bill, 2025 on behalf of the Minister for Education.

Mr First Deputy Speaker: Yes, Hon Minority Leader?

Alhaji Habib Iddrisu: Mr Speaker, we do not have any difficulty with that.

Mr First Deputy Speaker: Very well, the item numbered 10(a).

BILLS — FIRST READING

University of Engineering and Agricultural Sciences Bill, 2025

AN ACT to establish the University of Engineering and Agricultural Sciences and to provide for related matters.

Presented by the Minister for Energy and Green Transition (Mr John Abdulai Jinapor) on behalf of the Minister for Education. Read the First time; referred to the Committee on Education.

Mr First Deputy Speaker: Hon Members, the item numbered 10(b).

Human Sexual Rights and Family Values Bill, 2025

AN ACT to provide for human sexual rights and family values and related matters.

Presented by Member of Parliament for Assin South (Rev John Ntim Fordjour) and on behalf of eight others. Read the First time; referred to the Constitutional and Legal Affairs Committee.

Mr First Deputy Speaker: Yes?

Alhaji Habib Iddrisu: Mr Speaker, can the Hon Member give us a short explanation to this Bill?

Mr First Deputy Speaker: Very well.

Rev John Ntim Fordjour: Thank you very much, Mr Speaker.

The Human Sexual Rights and Family Values Bill, 2025 is a Private Member's Bill. It is not new to this House. As a matter of fact, the Eighth Parliament passed the same Bill. It is a Bill which, according to the Centre for Democratic Development (CDD), the Afro Barometer Survey, indicates that

across the length and breadth of this country, 93 per cent of the population consider the practices, promotion and propagation of Lesbian, Gay, Bisexual, Transgender (LGBT) and its related practices highly repugnant to our values and our morals as a society.

Mr Speaker, this is the Bill that our friends on the other Side, a few years ago, were so enthused and championed greatly with all their strength. It even cascaded into various forms of propaganda and became topical in the run-up to the 2024 elections.

Mr Speaker, just as the House passed it in the Eighth Parliament— But legal constraints stay in the hands of Parliament from transmitting same to the President for assent, which position the Majority Leader, Hon Mahama Ayariga, and the President of the Republic, H. E. President John Dramani Mahama, have all confirmed that indeed the Bill never got to Jubilee House for Former President Akufo-Addo to sign it and that it was still in this House owing to legal constraints.

However, the Supreme Court eventually had removed—

Mr First Deputy Speaker: Rev Ntim Fordjour, I would recognise the Hon Majority Leader.

Mr Ayariga: Mr Speaker, I have never confirmed that the Bill never got to the Jubilee House. I have consistently said that the Bill went to the Jubilee House, and there was a refusal to receive it and to sign it. So, he should desist from

peddling such falsehoods and drawing me into this matter.

Mr Speaker, I have consistently said that the Bill went to the Flagstaff House, and there was a refusal to receive it. A communication was sent out from the Flagstaff House to this Parliament, asking this Parliament to desist from attempting to transmit the Bill to the President.

Mr Speaker, the Hon Member should also be mindful of the fact that when he says, “my Colleagues on the other Side were enthusiastic” it is as if they are not enthusiastic today. When we look at the sponsors of the Bill, his name Hon John Ntim Fordjour comes first, and then the second person, Mr Samuel Nartey George, who is a National Democratic Congress (NDC) Member of Parliament and a Minister of State. Then there is Hon Emmanuel Kwasi Bedzrah, who is an NDC Member of Parliament, Hon Mrs Helen Adjoa Ntosu, who is an NDC Member of Parliament and a former Minister of State. I can mention many Hon Members of this House who are joining him to sponsor the Bill, and yet he tries to create an impression that this Side is not committed to the Bill, and that we were only committed to it in the past.

Mr Speaker, the reason this Bill delayed and is being presented today is because the technical processes were being undertaken under the guidance of the Rt Hon Speaker. So, once the Speaker gave an indication that it could be laid, at the Business Committee, we agreed that it should be laid.

So, he can go ahead and indicate precisely the objects of the Bill, and stop the antics of trying to create an impression that this Side is not committed to the Bill.

Mr First Deputy Speaker: Hon Members, why are we doing this to ourselves? The Hon Member invoking the Standing Orders did so rightly, calling on you to give a short explanation.

Hon Habib, is that not what you said in quoting the Standing Orders rightly? Now the Standing Orders for a good purpose says, “...a short explanation”, which you could do in a minute or a minute and a half. Usually, when it is a Bill, you just state in short— The rule says a short explanation, and it serves everybody.

Rev Fordjour: Mr Speaker, I am guided. The Memorandum that accompanies this Bill, the summary of which I will submit in a few seconds, makes reference to the fact that the same Bill was what was passed in the Eighth Parliament. The Hon Majority Leader can boldly contradict what the President of the Republic has said as a matter of public record, that the Bill was never transmitted to Jubilee House, and that if this House passes it, then he will take a decision on it. And so, when this Bill was first listed on the *Order Paper* seven months ago, it was deleted from the *Order Paper* the next day. A lot of controversies arose and Mr Speaker, you ruled on it.

Now we are here, the Bill has been laid to protect the values of the binary nature of gender and —

Mr First Deputy Speaker: Hon Ntim Fordjour, can you hear me?

When you are called upon to present a Bill to give a short explanatory memorandum, you just go to state the Object; you just go straight to tell us the Object of the Bill.

Then one might have satisfied the requirement under the rules. It is not time for debates. The debate will come at the Second Reading.

4:14 p.m.

Rev Fordjour: Thank you very much, Mr Speaker, for your superior guidance. So, now sticking to the object of the Bill, the Bill seeks to ensure that the definition of gender is not in ambiguity, as is now being authorised in textbooks and teacher manuals. The binary nature of gender as between male and female and as assigned at birth and its related activities is in line with our Constitution and our values as a society to protect marriage as contracted between a man and a woman. It is also to ensure that the family system, which we both cherish, is preserved.

Mr Speaker, in conclusion, it is the expectation of the sponsors, which is bipartisan— It is a bipartisan Private Member's Bill, which must be on record. The expectation is that within this Meeting, this honourable House and all relevant Committees will attach alacrity

to this Bill to pass it as a matter of urgency, before this House rises, because it is not a new Bill. It is an old Bill, which has gone through all the processes, consultations, and already survived a plethora of legal and dissenting opinions, and has gone all the way to Supreme Court and held that no aspect of this Bill affronts any aspect of our Constitution. I thank you, Mr Speaker.

Mr First Deputy Speaker: The referral still stands.

Mr Mahama Ayariga: Mr Speaker, given that this is the first time it is happening, where we have several sponsors to a Bill and the Deputy Whip has asked the sponsors to make a short explanatory statement regarding the laying of the Bill— Even though the Hon Member rose up to bow to allow the Bill to be laid, the others have a stake. So, Mr Speaker, I want to get your pleasure as to whether it is not fair that the other sponsors of the Bill be also heard on the object of the Bill *et cetera* and why they are sponsoring the Bill. Mr Speaker, you may add a few people who are part of the sponsors.

Mr First Deputy Speaker: Hon Members, order!

Mr Ayariga: This is important at all times in the consideration of this Bill, so that we will know that we are approaching it from a non-partisan point of view, so that the nation will be behind us. This is because if we want to go partisan on this Bill, it will be a problem. So, it is important from the beginning that the bipartisanship is reflected at

every stage. Given that he has made a statement, this Side of the House should also be given an opportunity to also make a statement indicating our support and commitment to the passage of this Bill; a commitment that we know will go up to signing the Bill. The other time, the commitment went and then it stopped at the gate of the Flagstaff House. This time, it will go into the Flagstaff House and we will sign it.

Mr First Deputy Speaker: Hon Majority Leader, I agree that there are about ten sponsors of the Bill, but in view of the fact that there will be a Second Reading, where many more of the sponsors will have the opportunity to debate the principles, the mischief in the society that the Bill is seeking to cure, let us reserve our energy for the Second Reading of the Bill.

Alhaji Habib Iddrisu — rose—

Mr First Deputy Speaker: Is it on the Bill? If it is on the Bill, Hon Members, with all due respect, we have already referred the Bill to the Committee on Constitutional and Legal Affairs. Let them go and work on it and bring their results.

Alhaji Habib Iddrisu: Mr Speaker, I wanted to make an application. If the Leadership of the Committee on Human Rights can be added to the Committee on Constitutional and Legal Affairs. Mr Speaker, it is so because it is a human right related matter.

Mr First Deputy Speaker: Yes, the Majority Side application is to add the Leadership of the Committee on Human Rights and I think it is in order. I would therefore direct that the Leadership of the Committee on Human Rights joins the Committee on Constitutional and Legal Affairs to consider the Bill and report.

Yes, Hon Kingsley Nyarko.

Prof Kingsley Nyarko: Mr Speaker, you and I are on the Committee on Private Member's Bill and Private Member's Motion. These Bills passed through the Committee. I want to make an application that, if possible, our Committee cannot be used as a conveyor belt for the Speaker to bring to the House. I am pleading that the Leadership of this Committee should also be part to consider all such Bills that will pass through our Committee. Thank you, Mr Speaker.

Mr First Deputy Speaker: Hon Kingsley Nyarko, are you guided by Standing Order 186? You know that the work of the Committee on Private Member's Bill and Private Member's Motions is limited to writing a Report to the Speaker whether the Bill meets the constitutional text or not, and whether it should be implemented or not.

I believe within the rules, once the Committee on Private Member's Bill and Private Member's Motion has done that, the work of the Committee regarding that Bill has come to an end. So, there is no way by which we could order a Committee on Private Member's Bill and Private Member's Motion to

also join in the consideration of the Bill. The responsibility of that Committee is supposed to advise as to whether, based on our rules and the 1992 Constitution, the Bill meets the text, particularly Article 108 of the 1992 Constitution, and section 100 of the Public Financial Management Act, and whether the Bill meets those requirements. Once the Committee is satisfied and recommends the introduction of the Bill, you do not ask the Committee to join the consideration.

Prof Nyarko: Mr Speaker, you are right on that score, but my point is that because we are privy to the Bill, we have read the Bill and made recommendation to Mr Speaker for his consideration as to whether he has to bring it before the House or not. Because of the fore-knowledge, I am saying that it would not be a bad idea for the Leadership to transfer their knowledge to bring to bear on the Committee that is supposed to look into it. This is the application I am making.

Mr First Deputy Speaker: Hon Member, the Committee is *functus officio*, and I am also *functus officio*.

Yes, Hon Habib Iddrisu?

Alhaji Habib Iddrisu: Mr Speaker, I think you are right in addressing the issue my Hon Colleague raised. But I just want to thank you for adding the Leadership of the Committee on Human Rights. Mr Speaker, if it will not hurt, I think for us to be able to get a very good Bill, we could add the Leadership of the Committee on Gender, Children and

Social Welfare. This is because majority of the definitions has to do with gender issues. If we get the Leadership of Committee on Gender, Children and Social Welfare as we have already added Committee on Human Rights, it will be able to make us have a very good Committee to look at it.

4:24 p.m.

Mr First Deputy Speaker: Hon Habib Iddrisu, I indicated that I am *functus officio*. In Committee sitting, any Member who has interest in the Bill can join the Committee and help give consideration to the Bill,

Thereafter a Report will come to the House for debate. Yes?

Osahen Afenyo-Markin: Mr Speaker, if you will be pleased, I rise to make an application for us to read Statements and, in particular, I pray that you permit me to proceed to make my Statement—*[Interruption]* Alright, we can lay the Papers. I thought we were done laying the Papers. That is fine.

Mr First Deputy Speaker: Yes, but we are considering item number 10.

Osahen Afenyo-Markin: Mr Speaker, I thought we had—

Mr First Deputy Speaker: No, it is left with item numbered 10(c).

Osahen Afenyo-Markin: Mr Speaker, I rest my case.

Constitution of the Republic of Ghana (Amendment) Bill, 2025

AN ACT to amend the Constitution of the Republic of Ghana to remove restrictions imposed on dual citizenship and persons who owe allegiance to a country other than Ghana from holding public offices specified in clause 2 of Article 8, and paragraph A of clause 2 of Article 94 and provide for related matters.

Read the First time; referred to the Committee on Constitutional and Legal Affairs.

Alhaji Habib Iddrisu: Mr Speaker, I do not know if we can add the Leadership of the Committee on Foreign Affairs and Regional Integration to this Bill since it involves —

Mr First Deputy Speaker: No.

Alhaji Habib Iddrisu: Mr Speaker, then I abandon that.

Mr First Deputy Speaker: Yes, the application is to come back to Statements.

Mr Dafeamekpor: Mr Speaker, we are not opposed.

Mr First Deputy Speaker: Yes, Dr Kabiru?

Dr Abdul Kabiru Tiah Mahama: Mr Speaker, thank you very much. I rescind on the Statement I wanted to make.

Mr First Deputy Speaker: Yes, Hon Members, we have a Statement standing in the name of Osahen Alexander Kwamena Afenyo-Markin. I will proceed to give him the floor.

Hon Majority Leader, do we take the Statements jointly or you want to reduce yours to a comment?

Mr Dafeamekpor: Mr Speaker, I believe that we should take it jointly.

Mr First Deputy Speaker: But it was agreed that Hon Assafuah's Statement will be reduced into a comment.

STATEMENTS

Cocoa Producer Price Reduction — Government Must Reverse the Decision with Immediate Effect

Osahen Alexander Kwamena Afenyo-Markin (NPP — Effutu): Mr Speaker, with respect, thank you for the opportunity to make this Statement on the need for cocoa producer price reduction that government must reverse the decision with immediate effect.

Mr Speaker, Government's shocking announcement reducing the prevailing producer price of GH¢3,625 a bag to GH¢2,587 a bag is illegal and an attempt to shortchange our gallant cocoa farmers. The producer price of GH¢3,625 is a minimum guaranteed price and legally destined to run the full course of the 2025/2026 crop season. The cocoa sector calendar in Ghana officially commences on the 1st October of every year and ends 30th

September the following year. Mr Speaker, we are just midstream of the 2025/2026 crop season and Government cannot vary the minimum guaranteed price to the disadvantage of the cocoa farmers or any of the parties that has a share in the achieved Free on Board (FOB) price. Note, it is minimum and also guaranteed in entire course of the crop year.

Mr Speaker, the determination of the producer price of cocoa and the FOB share to other stakeholders in the industry is done by the Producer Price Review Committee (PPRC). What becomes an FOB price for the approaching crop year is, in effect, the achieved weighted average of aggregated volumes and corresponding prices of cocoa already traded and contracted locked with buyers. The aggregates could be main crop beans at higher prices in combination with light crop beans at 20 per cent discount and, or rollover beans at higher or lower prices.

Mr Speaker, once the FOB price sharing is done and announced for a crop year, the producer price that arises is binding on Government/COCOBOD to pay throughout the crop year. Because it is achieved average, minimum and guaranteed, Government cannot cut the farmers price even the slightest down. If anything, Government can go up in the course of the year as has been the case, but never down. Mr Speaker, it should be recalled that the Minister for Finance, Dr Cassiel Ato Baah Forson, in October, 2025 announced that COCOBOD has achieved an FOB price of US\$7,200 per tonne and the farmer

was to receive a producer price of US\$5,040 at the then rates into cedi converted as GH¢58,000 per tonne or GH¢3,625 per 64 kilogramme bag.

It is our candid opinion that the US\$7,200 FOB price was based on factually achieved weighted average prices of already traded cocoa and not speculation. If it was factual, then Governments and COCOBOD must go ahead and pay the prevailing price of GH¢3,625 per bag to the end of the 2025/2026 crop year.

Be that as it may, Mr Speaker, once a producer price has been determined and announced for the crop year, it is legally and contractually binding. Therefore, Government cannot in the course of the particular year vary the producer price to the disadvantage of the farmer. *[Expunged by order of Mr Speaker.]*—hereby call on the Government, as a matter of urgency, to restore the producer price of cocoa in Ghana to its original value of GH¢3,625 per 64-kilogramme bag with immediate effect.

We also demand that Government and COCOBOD pay any difference that farmers and the Licensed Buying Companies (LBCs) might have suffered already by the recent announcement.

Mr Speaker, I so submit. Thank you so much.

Mr First Deputy Speaker: Hon Members, I thank the maker of the Statement but order that the words—be expunged from the record since that is not part of the Statement before me.

Yes, I will call on the Majority Leader to also read his Statement.

Mr Ayariga: Mr Speaker, I had thought that we would have taken this Statement at a time when the Minister for Finance who is responsible for the sector would have been in the House to respond.

Unfortunately, we have insisted on taking it today, and so I crave your indulgence to just read a Statement of the Minister for Finance.

4:34 p.m.

Cocoa Sector Reforms for Financial Viability and Long-Term Sustainability

Majority Leader (Mr Mahama Ayariga) on behalf of the Minister for Finance: Mr Speaker, on Wednesday, 11th February, 2026, Cabinet convened an emergency session to deliberate over developments in the cocoa sector. The session conceded historical and systemic problems confronting the sector and took key decisions. The meeting noted the following developments in the cocoa sector. The 2025-2026 cocoa season began in August 2025 with a producer price at GH¢51,660 per tonne, calculated at 70 per cent of the Gross Free on Board (FOB) of US\$7,200 per tonne, using an exchange rate of GH¢10.25 to the US dollar.

On 1st October, 2025, Cote d'Ivoire announced a new producer price, 20 per cent above that of Ghana. This decision by the Ivorians, coupled with movements in the exchange rate, resulted in a

significant difference in the producer price of cocoa between Cote d'Ivoire and Ghana. This price difference had the potential to trigger significant smuggling of Ghana's cocoa to Côte d'Ivoire.

As a result, the Producer Price Review Committee (PPRC) adjusted the producer price to GH¢58,000 per tonne to reflect an exchange rate of GH¢11.5 to the US dollar at the time. The decision by the PPRC to increase the producer price of cocoa made Ghana's farmgate price competitive and stemmed the potential smuggling of Ghana's cocoa across to Cote d'Ivoire. Mr Speaker, from October 2025, the world market price of cocoa started dropping. While the price was declining, COCOBOD continued to sell the beans until the price went below US\$6,400 per tonne, which is the cost of cocoa from the farmer to the port.

Cause of the Situation and the Way Forward

The current situation is largely driven by the unwillingness of buyers to purchase Ghana's cocoa because it has become uncompetitive. Cocoa from other producing countries is now selling at prices significantly lower than the producer price of Ghana. Meanwhile, COCOBOD did not have the liquidity to purchase cocoa from farmers and stock for hedging or other trading decisions. This was due to the financing model invented in 2024/25 when the Syndicated Loan failed. Under that model, the buyers (off-takers) financed the purchases.

By 2022, COCOBOD finances had deteriorated badly. It defaulted and restructured the cocoa bills in 2023. For the first time in 2023, the annual syndication suffered significant delays due to loss of confidence in the Ghanaian economy. The first tranche was received on 22nd December, 2023, four months after the commencement of the season. COCOBOD projected an output of 800,000 tonnes and committed 786,000 tonnes in contracts in the 2023/24 crop season. However, actual production was only 432,145 tonnes, a deviation of 45 per cent from the projected output. Forty-five percent deviation in 2023-2024.

Variations in crop forecasts typically vary between five per cent to 15 per cent. Hence, a deviation of 45 per cent was unprecedented. This resulted in huge rollover contracts of 333,767 tonnes at an average price of US\$2,661 per tonne. This resulted in a loss of over US\$1 billion, which would have gone to cocoa farmers and other stakeholders. In 2024, COCOBOD could not pay the final tranche of the Syndicated Loan, which was due in July 2024, and received a US\$70 million breach financing from the Ministry for Finance to avert a default. Despite a commitment to repay the US\$70 million breach financing owed to the Ministry of Finance, COCOBOD defaulted, highlighting the dire financial straits of the Organisation at the time. This debt has since been inherited by the current management of COCOBOD.

Proposed Reforms

A careful review of the cocoa sector over the last eight years revealed gross

mismanagement, which requires immediate and comprehensive reforms to address the challenges in the sector. Cabinet has therefore decided on the following reforms to guarantee a fair price to farmers, secure the financial viability of the cocoa sector, and ensure the long-term sustainability of the industry. To bring relief to unpaid cocoa farmers, Cabinet has directed COCOBOD to commence immediate payment of all affected cocoa farmers; a new COCOBOD Bill will be presented to Parliament to implement an automatic adjustment of producer price to align with movement in the world market price, exchange rate, and other key variables, and guarantee a minimum of 70 per cent of the Gross FOB price to be paid to cocoa farmers.

A new Financing Model for Cocoa Purchases and related Operations with associated benefits for increased processing as follows: the current Financing Model was invented as a necessity after the Syndicated Loan failed, after 32 years of successful implementation, and it has proven not to be sustainable; the Financing Model is entirely dependent on a buyer's willingness to bear the financing cost and to pre-finance the purchase of cocoa, the key motivation for buyers in the previous season was the rollover contract price at about US\$2,661 when the existing market price were above US\$8,000 per tonne; once the gap between the rollover contracts and the market price closes and the majority of the rollover contracts are serviced, the buyer will not be willing to purchase the crop; alternatively, the

previous syndicated loan model required Cocoa Board to sell forward most of the raw beans to lock in contracts, which repays the loan and serves as the collateral as well; this system did not allow COCOBOD to optimise prices on the market. In addition, the use of the raw bean contracts as collateral for the loan meant that Ghana could not optimise its installed capacity for processing; and the new Financing Model will utilise domestic cocoa bonds to purchase cocoa and repay with cocoa proceeds within each crop year. The bonds will be used to raise a revolving fund for COCOBOD to turn around at least once during the season.

The model will also revive the indigenous license-buying companies that have been completely thrown out of business as a result of the current Financing Model. The state-owned Produce Buying Company (PBC) will be revived to resume full operation and become the lead license-buying company in the cocoa sector. With this new financing model, COCOBOD can sell beans of any volume to local processing companies to promote value addition and job creation. Cabinet has directed that, with immediate effect, the remainder of the beans for the 2025/26 crop season should be allocated for domestic processing. Cabinet has also directed that, beginning from the 2026/27 crop season, a minimum of 50 per cent of cocoa beans should be processed locally. Pursuant to this, the state-owned processing company will be revived as a matter of priority to become the lead processor of the cocoa beans.

4:44 p.m.

I have only this morning, together with the Hon Minister for Trade, Agribusiness and Industry, met with Domestic Cocoa Processors who have indicated their capacity and willingness to process more than 50 per cent cocoa produced in Ghana. An agreement has been reached on that. In order to address the indebtedness inherited by the current management of COCOBOD, Cabinet has further directed the Hon Minister for Finance to urgently seek parliamentary approval to convert part of the legacy debts of about GH¢5 billion owed to Minister for Finance and Bank of Ghana to equity. COCOBOD currently owes the Ministry of Finance GH¢3.7 billion which arose from the conversion of the non-marketable cocoa bills into a loan, and the Bank of Ghana a 10-year loan of GH¢1.38 billion. The debt conversion will restore positive equity and boost the international and local markets to support the operations of COCOBOD. This will strengthen the balance sheet of COCOBOD to enable it implement the new financing model for the purchase of cocoa and related operations.

Cabinet has also directed the transfer of cocoa roads liabilities of GH¢4.35 billion to the Ministry of Roads and Highways from 2014 to 2024. COCOBOD awarded cocoa contracts of up to GH¢26.5 billion with GH¢21.5 billion of contracts awarded in 2018/2019, 2019/2020 and 2020/2021 crop years. Despite an agreement under the IMF programme in 2023 to rationalise COCOBOD commitments of GH¢21.7 billion to GH¢6.9 billion, the

previous Board and management of COCOBOD failed to conduct this exercise. The exercise has subsequently been completed under the supervision of the Ministry of Finance. The Ministry of Roads and Highways, and COCOBOD jointly conducted this rationalisation exercise to reduce the exposure on cocoa roads upon the completion of the exercise. The total exposure of GH¢ 21.7 billion has been reduced to GH¢ 4.36 billion. Cabinet has directed that the liability of GH¢ 4.36 billion be transferred to the Ministry of Roads and Highways. Cabinet noted that road construction accounts for a significant part of the financial difficulties of COCOBOD.

Pursuant to an earlier announcement by the Minister for Finance, the new COCOBOD bill prohibits COCOBOD from all such quasi-fiscal expenditures and non-core activities. As announced in the 2026 Budget, Government of Ghana has secured a US\$500 million World Bank facility to construct agricultural roads, including roads in cocoa growing areas.

To ensure accountability and transparency in the management of COCOBOD and the cocoa sector as a Cabinet has directed the Attorney-General and Minister for Justice to commission concurrent forensic audit and criminal investigations into the activities of COCOBOD over the last eight years. Cabinet has directed the Ministry of Finance to ensure accountability to ensure accountability and transparency in the management of COCOBOD and the cocoa sector as a

whole. [**Mr Dafeamekpor:** Repeat that for emphasis.] Cabinet has directed the Attorney-General and Minister for Justice to commission concurrent forensic audit and criminal investigations into the activities of COCOBOD over the last eight years. [*Hear! Hear!*] Cabinet has directed the Ministry of Finance to initiate immediate reforms at COCOBOD to streamline their operations and cut cost. Wasteful and uncontrolled expenditure practices are to be curtailed immediately.

The world market price has dropped significantly from an average of USD7,200 per tonne to US\$4,100 per tonne, making Ghana's cocoa beans uncompetitive and creating liquidity challenges. To address this, the Producer Price Review Committee (PPRC) met this afternoon to assess the challenges facing the sector and review the producer price for the remainder of the 2025/2026 crop season. In order to cushion the farmer, the PPRC has recommended that the farmers be paid 90 per cent of the achieved gross free on board (FoB) of US\$4,200 to mitigate the adverse impact on the farmer as a result of the fall in the world market price.

Consequently, the PPRC announces that effective today, Tuesday, 17th February, 2026, the new producer price for the remainder of the 2025/2026 crop season will be US\$41,392 per tonne and US\$2,587 per bag. This measure has become necessary to reflect the reality of the world market price of cocoa, ensure the injection of immediate liquidity for expedited payment of farmers and guarantee the sustainability of the sector.

Mr Speaker, this is the Statement of the Minister for Finance in dealing with the cocoa sector. And let me just add, in a very brief response, to the Hon Minority Leader. [*Uproar*]

[Expunged by order of Mr Speaker.]

Mr First Deputy Speaker: Hon Majority Leader, you are no longer reading the Statement. You are commenting, and the issues relating to legality or otherwise is not part of the Statement that I have received. So accordingly, I will order that it be expunged.

Mr Ayariga: Mr Speaker, as you may be aware of the circumstances surrounding the making of the Statement, I had indicated that we should hold on because I was preparing my Side of the Statement. Unfortunately, he insisted on, you know, making the Statement and you admitted it—

Mr First Deputy Speaker: Yes, so you are done. We allow Members to contribute to the Statement.

Mr Ayariga: Yes, Mr Speaker. So clearly, I had to put together different scripts that were at my disposal to make a Statement. So, it is not that I am commenting on the Statement. The first part of my Statement came from one piece, and the second part of the Statement is coming from another piece of the script that I have—

Mr First Deputy Speaker: That is why I indicated clearly from the beginning whether you want your

Statement to come by way of a comment or you read a Statement. The indication was that you will read a Statement. So having read your Statement, no comment.

Yes, Hon Members, it is now time for comments.

Alhaji Habib Iddrisu — *rose* —

Mr First Deputy Speaker: Yes, Hon Habib Iddrisu?

Alhaji Habib Iddrisu: Mr Speaker, I engaged the Hon Majority Chief Whip. Even though we were proposing to do 10 on each Side, we have agreed to do five apiece, then we move to Leadership to make six from each Side. So, we have submitted our list. I engaged the Majority Chief Whip on it.

Mr First Deputy Speaker: Yes, Hon Majority Chief Whip?

Mr Dafeamekpor: Mr Speaker, indeed, that was the agreement.

Mr First Deputy Speaker: Thank you very much for doing that.

So, it is now time for comments. I will give the first slot to Hon Samuel Abdulai Jinapor. Your comment must not generate debate, and you are commenting not more than five minutes.

You have the floor.

4:54 p.m.

Mr Samuel Abdulai Jinapor (NPP — Damongo): Thank you, Mr Speaker,

for the opportunity to contribute to the Statement ably made by the Hon Minority Leader.

Mr Speaker, I think it is important that we call a spade a spade. What is happening today in our country with regard to the cocoa sector is a direct consequence or result of gross mismanagement, poor governmental judgement, lack of understanding of the international cocoa trading by the Government. That is purely what it is. It has nothing to do with all the things the Majority Leader pointed out. It is clearly a result of mismanagement. I will explain.

The cocoa sector and the cocoa industry are older than our country, Ghana. It is as old as Ghana, if not older, Mr Speaker. It was very central in the issues which animated our forebears when it came to the struggle for independence. Mr Speaker, one million Ghanaians are involved in the cocoa sector. Directly and indirectly, we are talking about four million Ghanaian livelihoods when it comes to the cocoa sector of our country.

Mr Speaker, the experts have discussed this matter and have come to a firm conclusion. The reason we are in this mess is because the Government made a poor judgement when it comes to trading. They had the opportunity to engage in forward sale but they did not. They had the opportunity to engage in spot sale when cocoa price was US\$11,000 per tonne. They just did not understand the industry. They did not understand the sector.

Mr Speaker, the question about debt. Cocoa debts are as old as the sector and as old as the industry. When the Akufo-Addo Government came into office in 2017, it inherited a debt of GH¢19 billion. Indeed, in 2018, there was a debt, the Government of Ghana paid cocoa farmers; in 2020, Ghana had a debt, the Government of Ghana paid cocoa farmers; indeed, last year, we had debts, we still paid cocoa farmers. It has nothing to do with debts. It has everything to do with judgement, poor decision making and mismanagement.

Mr Speaker, today, our sister country, La Côte d'Ivoire, with almost the same population and industry dynamics do not even have premium cocoa. Ghana has premium cocoa. In spite of the so-called external factors, external shocks and external reduction in the international price of cocoa, La Côte d'Ivoire today is maintaining their price and paying more to their farmers than the Ghanaian Government is paying to theirs. [*Uproar*]

Mr Speaker, thirdly, never in the history of our country, since President Kwame Nkrumah's time in 1957, have we had such a reduction in cocoa prices in our country. I want to repeat, because it has to get home, and the Government has to be humble and courageous enough to accept this truth and reality. That what we are having today in Ghana generally, and the cocoa sector in particular, is because of mismanagement, lack of understanding of the sector, and indeed poor judgement when it comes to trading in respect of cocoa. The Government must acknowledge that. As I said, we

have never had a situation where cocoa prices have reduced in the manner that they have reduced today. What the Minority have asked for, and what cocoa farmers are asking for, is not grammar, it is not settings, it is not gimmickry. It is not public relations (PR). It has been 11 months and we have had enough of that. What we are asking for, and what cocoa farmers are asking for, is that they want —

Mr First Deputy Speaker: Hon Member conclude.

Mr S. A. Jinapor: Mr Speaker, I want to conclude, and I conclude on this fundamental point, that they want a bailout. They want Government to cut down on expenditure when it comes to the cocoa industry and cocoa management. They cannot ask cocoa farmers to take a haircut when they are buying Land Cruisers at COCOBOD. They cannot ask cocoa farmers to take a haircut when they are renovating their offices. They cannot ask cocoa farmers to take a haircut when the entire value chain is saved and there are no cuts in the entire value chain and the poor cocoa farmer rather takes the cut.

Mr First Deputy Speaker: Hon Member, please your time is up.

Mr S. A. Jinapor: Mr Speaker, I really want to conclude but I hope the Majority Leader will take this to Cabinet. The President and Government should have the courage, the amnesty, and sincerity to accept that the reason for the cocoa price cut is because of

mismanagement and incompetence. Thank you, Mr Speaker. [*Hear! Hear!*]

Mr First Deputy Speaker: Hon Sampson Ahi, you have the floor.

Mr Sampson Ahi (NDC— Bodi): Thank you, Mr Speaker, for the opportunity to contribute to the Statement. Mr Speaker, I wish to state that we find ourselves in this situation because of the mess— [*Uproar.*]

Mr First Deputy Speaker: Hon Chief Whip, I beg you, with all due respect, Hon Samson Ahi has the floor. We need to manage the time.

Mr Dafeamekpor: Mr Speaker, exactly so. Mr Speaker, we listened to the first contributor from the Minority Side in absolute silence. So, they must learn to listen to our response in silence.

Mr First Deputy Speaker: Hon Sampson Ahi, you have the floor. You will stop at five minutes after five.

Mr Ahi: Thank you, Mr Speaker. We find ourselves in this situation because of the mess that was created under the watch of former President H. E. Nana Addo Dankwa Akufo-Addo and Dr Bawumia. It is never true that La Côte d'Ivoire has maintained their price. Mr Speaker, can they explain why?

Osahen Afenyo-Markin —*rose*—

Mr First Deputy Speaker: Hon Ahi, I will keep your time for you.

Yes, Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, you may recall that in my original Statement, out of great deference to you, when you edited the mention of the President in it, I accepted so that there will be no issue of debate. Mr Speaker, with respect, our Colleague can make his submission. He should stay away from trying to use those offensive words. *[Uproar]* No, Mr Speaker, let us be fair. Hon Colleagues, my original Statement, which Mr Speaker looked at, I agreed with him that in such matters, certain pronouncements must be out. If Mr Speaker did not permit the mention of President Mahama, why is he coming to talk about H. E. Nana Akufo-Addo and Dr Bawumia? Stop it.

Mr First Deputy Speaker: Hon Ahi, you can make your comment without mentioning anybody's name. Please proceed.

Mr Ahi: Mr Speaker, we find ourselves in this situation as a result of the mess caused by the previous administration and I want to state that it is never true that La Côte d'Ivoire has maintained their producer price. Because if it is so, the farmers will not even call on Government to come and buy their cocoa. Anytime La Côte d'Ivoire's price goes up, higher than Ghana's price, we will not even hear farmers calling on Government to come and buy their cocoa, because they will smuggle the cocoa to La Côte d'Ivoire. Since the farmers are calling on the Government now, it means that our price is even higher than what is being bought in La Cote d'Ivoire. Mr Speaker, we find

ourselves in this situation because under the watch of the previous administration, they took a facility from African Development Bank (AfDB) to undertake cocoa rehabilitation. They dedicated US\$350 million to rehabilitate 156,000 hectares. Mr Speaker, do you know that this US\$350 million was spent and instead of rehabilitating cocoa to the tune of 156,000 hectares, they did only 40,000 hectares. *[Uproar.]*

5:04 p.m.

The money was spent and they only rehabilitated 40,000 *hectares*. *[Uproar.]* That was not enough. Under their watch, in addition to that, they borrowed GH¢700 million from the Bank of Ghana (BoG) to rehabilitate 156,000 hectares. They did only 40,000 hectares. They have a lot of questions to answer and explanations to give us on what they did with the rest of the money.

Mr Speaker, within 2022/2023, under their watch, they took the facility of US\$800 million to buy cocoa of 800,000 tonnes. They said that they were going to use 786,000 tonnes to pay for their syndicated loan of US\$800 million. They only delivered 400,000 tonnes and they could not deliver 336,000 tonnes. We came in to pay for this mess that they created under their watch.

They should explain to us why they would borrow US\$800 million to buy 800,000 tonnes of cocoa, but they bought only 400,000 and spent all the US\$800 million. They should explain to us what

happened to the rest of the money. These are questions they should answer.

Mr Speaker, cocoa prices in this country are not announced in a vacuum. Cocoa prices are announced based on the prevailing market price at the world market. At the beginning of 2025/2026 cocoa season, a tonne of cocoa was GH¢7,200. But because we had promised cocoa farmers that we would pay 70 per cent, we gave them US\$5,040, which brought it to GH¢3,625.

On Friday, a tonne of cocoa at the world market was US\$3,600. If you are a reasonable and prudent government, what you do is that, you have to review the price to reflect the prevailing world market prices and that is what President Mahama has sought to do. [*Hear! Hear!*]

Mr First Deputy Speaker: Hon Ahi, your time is up. I then proceed to give the floor to Mr Kojo Oppong Nkrumah. It is now seven minutes after 5:00 p.m. You have the floor. [*Hear! Hear!*]

Mr Kojo Oppong Nkrumah (NPP — Ofoase Ayirebi): Mr Speaker, thank you for the opportunity to contribute to this Statement.

The gravamen of the submission from this Side of the House is that, just as Cabinet convened on an emergency basis to announce a reduction in the prices, we are asking Cabinet to reconvene and restore the bag price to GH¢3,625.

Mr Speaker, for those of us from the cocoa-growing villages, this is not a matter of free on board (FOB), 70 per

cent or 90 per cent or some of the technical jargons being put here. This is a matter of life and death for many cocoa farmers.

Early this morning, I got a call from a gentleman named Coffie from a village known as Kwaboadi No. 2 in my constituency. He has taken 200 bags of cocoa from cocoa farmers. He is a purchasing clerk and has made those 200 bags available to the district offices. After this announcement, the cocoa farmers say they know that they have sold their cocoa at the old price of GH¢3,625. The district officers are now telling them that, because COCOBOD has not evacuated, they are going to buy it at the new price.

Mr Speaker, what this means is that, for a purchasing clerk like Coffie, who has taken 200 bags of cocoa, he is now making a loss of about GH¢200,000. How many of us here, Members of Parliament and Ministers of State, can bear a loss of GH¢200,000 and survive? This is a matter of life and death for many people. It is not a simple matter of some of the numbers that are being bandied about.

Mr Speaker, the result of this decision is that, first of all, there is going to be poverty in the local communities where cocoa is the mainstay of economic activity. About one million Ghanaians are involved in the cocoa growing sector. When you cut every bag by GH¢1,000, their income is what you are cutting.

In the years ahead of us, what you are going to realise is that, the motivation for

a lot of young people to go into cocoa production is going to wane. In previous times, I remember, I think in the 2018/2019 year, cocoa prices on the world market went down.

I was in that Cabinet meeting when the then Senior Minister, Mr Yaw Osafo Marfo, put up a strong advocacy that it cannot be that the Government of Ghana will look cocoa farmers in the eye and cut their prices. True to it, the government did not cut cocoa prices. In fact, prices rose from GH¢475 to about GH¢3,100, despite the reduction in prices sometimes on the global market.

Today, it is shocking to hear our Colleagues on the other Side mention global or external factors. A few years ago, when we were telling them about the impact of external factors, they were laughing and saying that it is not possible. Today, they want to rely on external factors as a basis to cut cocoa prices by GH¢1,000 per bag.

Mr Speaker, another thing that is going to happen in the cocoa sector is that, trust and credibility when it comes to policies in this area is going to suffer. Today, the Government is starting conversations about introducing local financing. Who is going to have confidence in the ideas that they are mentioning? When in the same cocoa year, they promised the people a price of GH¢3,600, only to reduce it to about GH¢2,500.

Mr Speaker, I conclude by this submission. Our Colleagues on the other Side, when they were in opposition,

promised the Ghanaian cocoa farmer that what is due them is actually GH¢6,500. Their GH¢3,600 did not even meet the GH¢6,500 they promised. Even now, the GH¢3,100 that the previous administration left for them, they want to now cut it down to GH¢2,500.

Mr Speaker, on behalf of the one million cocoa farmers of this country, we beg them to go back to Cabinet and restore the GH¢3,625 for the cocoa farmers.

Mr Speaker, thank you for the opportunity. [*Hear! Hear!*]

Mr First Deputy Speaker: I now give the floor to Mr Fred Agbenyo. The time is 13 minutes past 5:00p.m.

Mr Fred Kwesi Agbenyo (NDC — Guan): Thank you very much, Mr Speaker, for the opportunity to comment on the Statement that was made.

Mr Speaker, we in the National Democratic Congress (NDC) care about the ordinary Ghanaian. We in the NDC care about the cocoa farmers. That is why, under the NDC Administration, we introduced the free fertiliser programme for cocoa farmers— [*Interruption.*]

Mr Speaker, when they came, even the fertilisers that we wrote on “Not for sale”, they cleaned the “Not” and they sold the fertiliser. We were in this country when the fertilisers that were meant for Ghanaian farmers were smuggled to Côte d'Ivoire, Burkina Faso and Togo under the NPP Administration.

Mr Speaker, under the NDC Administration, we gave free seedlings to cocoa farmers. For the eight years that they were in office, not even one seedling was given to cocoa farmers under their watch. At a point in this country, inflation was 54 per cent. Today as we speak, inflation is in single digit. The cocoa farmer is far better off under our watch. It is sad when we hear our Colleagues from the NPP pretend as though they like the Ghanaian cocoa farmer.

5:14 p.m.

They know them. They know what they did in the past eight years. They know that when they are looking for their enemy, they are the ones they will come and look for.

Mr Speaker, their party Members today are moving around the cocoa farms, trying to instigate the farmers. The farmers know them. They know what they did when they were in power. Under their watch, they awarded contracts to people to go and do cocoa roads. They gave them mobilisations, and they “chopped” the money. They did not do any work; that is their legacy.

Mr Speaker, even the cocoa scholarships that were made for poor farmers' children, were given to themselves. Their track record is there for all to see, that they do not care about Ghanaian cocoa farmers. What they care about is how to enrich themselves, and that the very little that was meant for them, they took it away.

President Mahama has promised that by the grace of God, in the short term, we would make sure that we add value to 50 per cent of our cocoa beans. We would price them right here in Ghana. We would no longer take syndicated loans to buy cocoa beans. We would use our own cedis to buy the cocoa beans right here in Ghana. They would all see it with their eyes. They would see what we would do in this industry, and Ghanaian farmers will appreciate us. So, when they have a problem today, and we are talking about it, they should be the last people to open their mouths. They should keep quiet and watch President Mahama deliver on his promise.

Mr Speaker, on this note, let me assure cocoa farmers, as the Akans say, “ɔmo asoa nsuo, ɔmo asoa nsa” to wit, “they have carried both water and alcohol.” They know that the New Patriotic Party (NPP) are bad managers of the economy, and that for the past eight years, they only came to enrich yourself.

Thank you very much, Mr Speaker, for the opportunity. [*Hear! Hear!*]

Mr First Deputy Speaker: Thank you very much, particularly, for operating within the five minutes.

Hon Members, let us listen to ourselves in silence. You can talk, but sometimes do it in a way that we do not hear you.

It is now the turn of Hon Dr Kabiru Mahama. You have five minutes, and the

time is 17 minutes after seven. Please proceed.

Dr Abdul Kabiru Tiah Mahama (NPP — Walewale): Mr Speaker, I rise with a heavy heart and a bit of disappointed, in the sense that over one million farmers are suffering as we speak. But this House has turned it into politics.

Mr Speaker, the fate of every single cocoa farmer —

Mr First Deputy Speaker: Hon Dr Kabiru, hold it.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, this is a House of records. When he mentions a specific figure and says “...one million cocoa farmers...” that is factually inaccurate, because at the time of the review of the prices, over 70 per cent of the cocoa had already been paid for. So, if one million cocoa farmers produce one million tonnes and we are having a problem, and we have already sold 70 per cent, and are left with 30 per cent, and reviewed the price downwards, it is not the entire one million cocoa farmers that are to be affected. It is only the 30 per cent whose cocoa has not yet been purchased. They are the only group that will be affected. So, when he gets up and categorically states that one million cocoa farmers are affected, it is factually inaccurate.

Dr A. K. T. Mahama: Mr Speaker, I will urge the Leader of the House to

listen to me. This is not an issue we have to play politics over.

Mr Speaker, I never mentioned volumes. I stated clearly in my introduction that the fate of one million cocoa farmers is what we are discussing. We should not treat it as business as usual.

Mr Speaker, I am disappointed because these farmers struggle to make ends meet every single day. I am disappointed because people from the north come to the south because of their *ebu nu* and *ebu sa* agreement. They are cocoa farmers. I am disappointed because this is not a southern or a northern issue; it is a national issue. We are facing a national emergency. So, when we come to this House to discuss it, I will appeal to this Side, and I will appeal to the other Side to handle this issue with seriousness and not do politics with it.

Mr Speaker, and I come to my point. Cocoa is a major staple of the country. I am afraid that we would experience the scarcity of resource. It cannot be said that Ghana is not getting it right when it comes to our gold and cocoa. It cannot be right that we are selling gold and cocoa and making losses. I think that this House must do something right about it.

Mr Speaker, Ghana is the second largest producer of cocoa. As we speak, what has caused this problem is purely a mistake of strategy. How can they make the cocoa prices spot price when they know that the market is a forward

market? How do they decide as a Government to assume that prices are going to increase, and leave over 70,000 tonnes of cocoa in the hands of the farmers, and not export it, or sell it, then when the prices are crashing, they want to blame people?

Mr Speaker, this is not the first time we are experiencing a crash in cocoa prices. So, if anyone there is telling us that cocoa prices are decreasing, and so farmers should take a haircut, I beg to differ, because in 2017, as my Hon Colleague mentioned, cocoa prices reduced, but the then Government took a decision to protect the farmers. If they cannot protect the farmers, what is the essence of Government. What use would their vote for the politicians mean if in time of difficulty, they cannot protect them?

Mr Speaker, we are not asking for anything special. We are asking the Government to restore the prices of the farmers. And it is not only in Ghana. In Côte d'Ivoire, for instance, they also experience a decline in prices, but the Coffee and Cocoa Council of Côte d'Ivoire also took a decision to maintain the prices. Currently, it is at GH¢3,600 in Côte d'Ivoire. Why would they not do the same thing for our farmers?

Mr Speaker, I will conclude on this. We have a problem. In Ghana, we initiated what we call the Côte d'Ivoire-Ghana Initiative. The essence of that initiative was to protect the prices because it cannot be right that Ghana control almost half of the cocoa, but we cannot dictate prices. So, our call is

simple. The Government should take a decision and maintain the prices of the farmers.

Thank you very much, Mr Speaker.

Mr First Deputy Speaker: It is now the turn of Hon Eric Afful. It is now 5:23 p.m. You have the floor.

Mr Eric Afful (NDC — Amenfi West): Mr Speaker, let me thank you so much for the opportunity to contribute to the Statement by the Hon Majority Leader.

Mr Speaker, let me put on record that between 2017 and 2024, the cocoa sector suffered in the hands of the NPP. They collapsed all their 36 largest buying companies.

Mr Speaker, apart from the Produce Buying Company Limited (PBC), which is a Government institution, Adwumapa Buyers Limited, Cocoa Merchants (Ghana) Limited, Akuafo Adamfo Marketing Company Limited, Transroyal Ghana Limited, Sika Aba Buyers Limited, Diaby Company Limited among others are in liquidation.

5:24 p.m.

Mr Speaker, we know that the Licence Buying Companies (LBCs) are the companies that help the rural economy in this country. That is why I am saying that they have made the sector suffer within their time.

Mr Speaker, NPP is not trying to love cocoa farmers. It is never true; they do

not love them. When they came into power, they sold the fertiliser bags meant to be delivered to farmers free of charge; they sold them at GH¢80 per bag. It was meant to be free. They are now pretending they love cocoa farmers; they do not love them.

Mr Speaker, cocoa production in 2016/2017 was 967,000 metric tonnes. When they were leaving power in 2024, it was less than 500,000 metric tonnes. What is happening within this country? Mr Speaker, at times, I do understand some people who pretended that they have worked. Before NDC left power, in 2016/ 2017 crop year, there was a Fund meant to restore the producer price of cocoa for the farmers when there was a fluctuation of prices at the world market. We left about GH¢350 million in that Fund. *[Interruption]* Cocoa price stabilisation fund. We left this amount of money which was meant to cushion the cocoa farmers when there was a price fluctuation. Where is that money? That money cannot be found in the books of Ghana COCOBOD, and they are here talking about it. They are here pretending they love the cocoa farmers. They never loved them.

Mr Speaker, as has been said here, they took US\$800 million to buy cocoa. They bought half of it. Where is the 400,000 metric tonnes of cocoa? Where is it? They cannot find it. Meanwhile, they could not produce 333,000 metric tonnes.

Now they are talking about La Côte d'Ivoire. As we speak today, La Côte d'Ivoire is not buying any cocoa because of the seed fund situation.

They do not love cocoa farmers, so they should not pretend to love cocoa farmers. Thank you so much for the opportunity.

Mr First Deputy Speaker: I will give the floor to Hon Onyina-Acheampong.

Mr Akwasi Gyamfi Onyina-Acheampong (NPP — Kwabre East): Thank you, Mr Speaker, for giving me the opportunity to add my voice. I am also quite shocked at this current occurrence, because what is happening now is not what this current Government promised our dear, cherished farmers. They told them that they will receive a very good price. They told farmers that *yebeto cocoa mu papabi*, to wit, we will increase the price handsomely. This is what they told cocoa farmers. They came in and they have drastically reduced the price of a bag of cocoa. About GH¢1,038 shortage in a bag of cocoa.

They outlined three major reasons: carryover contracts, COCOBOD debt, and a decline in world market price. Mr Speaker, all these reasons outlined have happened before in the previous Government. When we came into power in 2017, there was a drop in price. From GH¢2,200 to GH¢1,900. When we came, COCOBOD debt was still there. When we came, world market price also dropped. When we came, there was over 190,000 tonnes of rollover contracts. The difference between us, the NPP Government, and this insensitive Government is that we cared about the ordinary farmer. We cushioned the farmer. We gave them cushioning. We found a way of handling this. What we

did was that we collaborated with La Cote d'Ivoire and we had the living income differential of US\$400 per tonne. They are still benefiting from this arrangement. This was what we did.

Now, what they are doing is quite unfortunate. The only reason we are having this issue is because of incompetence and judgement. The only reason is because they have not been proactive enough. There is poor strategy and they are turning around to blame someone. Instead of assuming responsibility and taking the matter up by taking the bull by the horns, they are just passing the buck. This is not what we budgeted for. This is not what we signed up to.

Mr Speaker, there is a lot of effect on farmers. Farmers are now facing high electricity prices and highwater bills. By Friday, the transportation fares will increase. They have been hit again with another GHC1,000 slap on their incomes. And they tell us, *aban papa aba*. Is this *aban papa*? No way!

Mr Speaker, La Cote d'Ivoire, as we speak, have pegged their cocoa price at CFA 2,800 per kilo, translating into GHC 3,600 per bag. When we talk about it, they are saying that LBCs have collapsed. Mr Speaker, the impact of this price reduction is not only to farmers. LBCs and Purchasing Clerks (P.C.s) are suffering. This is because some of them bought the cocoa and they were holding it. They paid the farmers in lieu of the Government paying them, their stocks are still lying in their sheds and warehouses, and their prices have been reduced. Over six million people who

depend on cocoa are now suffering because of this decision. This government is not taking responsibility and wants to pass the buck.

They need to pay the farmers their original price. This is what we are saying. Pay the farmers!

When these issues happen, they did a knee-jerk reaction. They immediately combined and brought a knee-jerk reaction, including reducing the salaries of people working in COCOBOD. This is just a slap in the thigh. This is not what we want. What we want is that the farmers get their due; the farmers get their share of what they promised them.

Pay the farmers! Pay the farmers their due! This is what we are asking for. Thank you, Mr Speaker. [*Hear! Hear!*]

Mr First Deputy Speaker: It is now the turn of Hon Vincent Oppong Asamoah.

Mr Vincent Oppong Asamoah (NDC — Dormaa West): Thank you, Mr Speaker. Let me thank the Hon Minority Leader for the opportunity to let Ghanaians know the actual issues. I am very sure after this, the rallies that we do under cocoa trees are going to stop. We live on the border with La Cote d'Ivoire. My only worry currently is that our political actors on the border should be watchful. This is because there are a lot of cocoa in La Cote d'Ivoire. But the fact is that the government over there is not buying cocoa. So, if care is not taken, even the reduced price, cocoa may be coming from La Côte d'Ivoire into Ghana. The money that we are going to release this week, if care is not taken,

they are going to use that money to buy Ivorian beans at the expense of our cocoa farmers.

5:34 p.m.

So let me sound this warning to our political actors on the border to be on the lookout.

Mr Speaker, there is a worrying situation. Currently, we are paying close to GH¢2,600 for a bag which translates into over US\$200. Even during the time of the NPP, when we were paying GH¢3,100, we were paying less than \$200—

Mr First Deputy Speaker: Hon Asamoah, hold it. The Hon Member of the Majority at the Backbench, if everybody in the Chamber should behave like you are doing, do you not think the Chamber will be more than the market?

Mr V. O. Asamoah: Some of the things that we have observed with COCOBOD, at times we sit down and ask ourselves, why should we have a government that instead of seeking the interest of Ghanaians and cocoa farmers, turn around and govern in a way that will put an institution like COCOBOD in a situation what we find ourselves. I remember during Dr Opuni's time; we were close to 1 million tonnes of cocoa. By the time the NPP was leaving, they did less than 500,000 tonnes of cocoa yet, they were able to add more than 30 per cent of the workforce. Where in this world can we find that whilst output is coming down, workforce is still

recruited. Go to the ports. They bought a lot of cocoa sacks that till 2029, we do not have to even buy cocoa sacks. They knew very well that the company was in distress, but they were only thinking about how they could cut corners, get their percentage and go away.

A lot of things happened in COCOBOD, and I believe sincerely that for the first time in the history of this country, COCOBOD is paying 90 per cent FOB to cocoa farmers, and only 10 per cent is left for our recurrent expenditure. With all these things, the NPP thinks that Government should go and look for loans to top up and pay for cocoa farmers. We do not do that.

Let us come to COCOBOD. By the time they were awarding contracts, for three years they had not even made any allocation in their budget to pay contractors for cocoa roads which was over GH¢20 billion. With all these things, they turn around—My Brothers, do we even think about this country? We turn around for the sake of politics. They know they have not done a lot of things right. They know most of these problems that have bedevilled COCOBOD are as a result of mismanagement. Rightly so, Hon Jinapor mentioned that the current situation that we find ourselves in is as a result of mismanagement, and this was done during the NPP's governance.

I think the current administration led by the CEO, Dr Randy Abbey, are doing everything with the Government to turn things around. So, we should not play politics because, farmers were happy when we paid them the price that has

been announced. I assure them that by the end of the week, most of the farmers are going to receive money for the cocoa that has been delivered at the LBC level. Cocoa that has been graded and sealed—

Mr First Deputy Speaker: Hon Member, your time is up. It is now the turn of Mr Michael Aidoo.

Mr Michael Kwasi Aidoo (NPP — Oforikrom): Thank you Mr Speaker, for the opportunity to comment on the Statement. Mr Speaker, the issue at hand is not just semantics but a serious issue that I believe we all have to pay attention to. The issue is about a trading option gone wrong. I believe a lot of people do not understand what cocoa trading is and what commodity trading is, because of that, we dilly-dally with the politics.

Mr Speaker, every year COCOBOD trades some of its cocoa forward. Why do we trade cocoa forward? To get clarity so that we will know how much cocoa we are getting, how much sales revenue we are expecting, then based on that, in October, we strike the average and determine the free on board (FOB) price for the farmer. In Ghana, we give the farmer a guaranteed minimum price. What do we mean by a guaranteed minimum price? It means that the price that we are giving is guaranteed within the season and it is not supposed to go down.

If anybody has taken a critical look at the statement that was issued by La Côte d'Ivoire, they mentioned that they are maintaining the guaranteed minimum

price of 2,800 CFA Franc for a bag of 64 kg, which when converted gives us about GH¢3,600 per bag. So, Ghana announced a price of GH¢3,625 last year, August, when the season opened. Mr Speaker, once we have announced that price, we are supposed to guarantee the farmer to the end of the season. What has happened? Instead of COCOBOD selling forward sales, they decided to depend on spot sales, because of that, a chunk of cocoa was not sold. That is the only reason we are where we are.

Mr Speaker, I have heard people say that 85 per cent of our cocoa was sold. In actual fact, if they sold 85 per cent of cocoa, how then do they turn back and ask for a reduction of the price? If they were able to sell 85 per cent of the cocoa, whilst they know that for a very long time, we sell 70 per cent forward, before we sell the additional light crop beans, why are they reducing the price of the farmer? These are issues that are directly going to affect the farmer.

Mr Speaker, the farmer does not take salary like you and I. Most of these farmers depend on the revenue that they will get within the season to the extent that they even take loans on the expected bags of cocoa. Imagine a farmer has gone to take a loan with the expectation that the price will be GH¢3,625 then they come back and deduct thousands of cedis from the farmer. What do they leave for the farmer? What you have done is to shortchange the farmer, and leave the farmer in debt.

I have heard our Hon Colleagues consistently saying that COCOBOD has

debts. In accounting capital structure theory, a company can leverage on debt as long as the company is expecting revenue and knows that there will be accrued revenues. Once the company knows there will be accrued revenues, they can leverage on debt. When we came to power, we came to meet debt of GH¢19 billion, but we managed it, maintained the farmer's price and made sure the farmer was not shortchanged. Let us maintain the farmer's price at GH¢3,625. It is as simple as that.

Mr First Deputy Speaker: Hon Members, I would proceed to give the floor to Hon Edem Agbana.

Mr Eric Edem Agbana (NDC — Ketu North): Mr Speaker, I humbly want to defer to the Hon Minister for Energy and Green Transition because I need to attend to this. [*Uproar*]

Mr First Deputy Speaker: Hon John Jinapor, you have the floor. Yes, Hon Habib?

5:44 p.m.

Alhaji Habib Iddrisu: Mr Speaker, in order to be guided, you asked the Whips, and we agreed and submitted names to you. We made those choices. So, if there is going to be any amendment, it should come from Leadership, not the Backbencher. He has no such authority to do that, and more to the point, the Minister for Energy and Green Transition is not from a cocoa-growing area. In Yapei Kusawgu, there is no cocoa farmer—

Mr First Deputy Speaker: Hon Habib Iddrisu, I think you are completely out of order.

Hon John Jinapor, you have the floor.

Mr John Abdulai Jinapor (NDC — Yapei Kusawgu): Mr Speaker, the issue before us is an issue that boils down to honesty, integrity, and doing what is right. I have heard my Colleagues say that Government should go and borrow and pay the cocoa farmers. That is what they have been advocating for.

Mr Speaker, it is this same borrowing that our Colleagues did and eventually landed Ghana in a state of bankruptcy. At least, history will teach you that when you are a landlord, it is better to provide food every day than to provide jollof rice one day and starve your children for the rest of the days. Mr Speaker, what we are doing is simply attempting to balance the equation and give the farmers what is due them. I heard the Ranking Member say that we should forward sale. A forward sale is an element of hedging. But as we are forward selling, whoever is buying it is also forward buying. And he says that we knew that the price would go low. So, because the price will go low, you sell the produce today. If you are a buyer and you know that the price will go low tomorrow, will you buy it today? [**Some Hon Members:** No.] This is common knowledge. This attempt of forward sale does not work.

Mr Speaker, when we left office, we had a complaint from the then administration that the debt was GH¢19 billion. They told us that it was not sustainable. Did they not say that?

Today, they have taken the debt to GH¢36 billion, and they think that it is sustainable? If GH¢19 billion was not sustainable, how do they think that GH¢36 billion is sustainable? They had eight years to deal with the situation. One, they reduced the tonnage because their revenue is a function of price and quantity. Even when the price comes down, and quantity shoots up, we will get that revenue. So, if they reduce the quantity from almost one million to about 500,000, and they could not even syndicate the loan, and they leave such a burden to the NDC Administration, and we are taking pragmatic steps to solve the problem, the least they can do is to commend the Mahama Administration. If they cannot do that, excuse me, they should shut up.

Mr Speaker, this attempt to politicise this cocoa issue will not wash today or tomorrow. The farmers know better. We are not shortchanging the cocoa farmer and that is a fact. All they are asking us to do is to go and borrow money and come and top up to the 80 per cent or 90 per cent that the cocoa farmer is getting. Today, when we go to the international market, and we sell the cocoa, we are giving the farmers what is due. The only problem is that the prices have come down. Because the prices have come down, when we give them 80 per cent of the price, it will seem small. But there is something known as real purchasing power in Economics. Mr Speaker, if I receive GH¢100,000 and the price of cement is GH¢100,000, it means I can buy only one bag. But if I receive GH¢80,000, that is a reduction, and the price of cement is GH¢70,000, I will buy

one bag and still have GH¢10,000 left. This is simple Economics: Class 1 Economics; Form 1 Economics. In the university, it is Economics 101. The amount of money the cocoa farmer gets from the face value might look small. But I prefer a gallon of fuel selling today at GH¢9.00 than when it was selling at GH¢23.00 under Bawumia. I prefer a bag of cement selling at GH¢82.00 than when it was GH¢104.00 under Bawumia. [*Hear! Hear!*]

Mr Speaker, when you fry, bake, roast, or toast it, this administration has done far better than the NPP Administration, and they have no cause to complain. On that note—And let me commend the Minister for Finance for being pragmatic and for being real. Thank you very much, Mr Speaker.

Alhaji Habib Iddrisu: Mr Speaker, we are yielding to our Ranking Member on the Committee on Food and Agriculture, Hon Isaac Y. Opoku.

Mr First Deputy Speaker: Very well. Ranking Member of the Committee on Food and Agriculture, you have the floor. It is now 5.51 p.m., so you would stop at 5.56 p.m.

Osahen Afenyo-Markin — *rose* —

Mr First Deputy Speaker: Yes, Hon Minority Leader?

Osahen Afenyo-Markin: Mr Speaker, when my Colleague, Hon John Jinapor, was on his feet, he used an offensive word. The words that came from him— [*Uproar.*] My Hon

Colleague should hold on. He is also a Minister and we are to accord him all due respect. He cannot refer to his Colleagues that if they disagree— Because all we are saying is in disagreement of Government's decision, he is saying that we should shut up. *[Interruption]* No, those were his words. You see, he used those words.

Mr Speaker, it is not an appropriate phrase.

Mr First Deputy Speaker: Hon Minority Leader, let me try and see if I can repeat what he said. He said that upon all that has happened, if you would not support the steps being taken in the cocoa sector, “then excuse me, they should shut up”. That is what he said.

Osahen Afenyo-Markin: Mr Speaker, we speak for the cocoa farmers. So, is he saying the cocoa farmers should shut up? *[Uproar]* No, Mr Speaker, I want to know. The phrase “shut up”— Mr Speaker, he is right here. He should clarify—

Mr First Deputy Speaker: The phrase “shut up” is used in relation to Colleagues, not cocoa farmers.

Osahen Afenyo-Markin: Mr Speaker, so who was he referring the “shut up” to? He should let us know.

Mr First Deputy Speaker: You see; this is eating into the time. Let me give him the floor.

Yes, Hon John Jinapor?

Mr J. A. Jinapor: Mr Speaker, I am never a difficult person, and he knows it. I never meant to attack the Minority. I said, Mr Speaker, if they do not appreciate what we are doing, excuse my language, then they should shut up. If that is offensive, Mr Speaker, I withdraw it. It does not hurt anything. I withdraw it in its entirety, and I stand by my words.

Thank you.

Mr First Deputy Speaker: Yes, Hon Member, do you intend to speak?

5:54 p.m.

Dr Isaac Yaw Opoku (NPP — Offinso South): Thank you very much, Mr Speaker.

Today, I am very sad. Mr Speaker, I am sad that my Friends on the other Side have found some voices to defend the indefensible.

Mr Speaker, my Friend, Hon Fred Agbenyo said that the NDC Government introduced the Free Fertiliser Programme. I will forgive him because the fertiliser programme was introduced by His Excellency former President Kufuor in 2003 for his information. Mr Speaker, all the productivity enhancement programmes were introduced by the NPP Government.

Mr Speaker, I am surprised that they are talking about production figures. I have mentioned this before. The highest production figure ever in this country was under Nana Addo Danquah Akufo-Addo's regime. *[Uproar]* The figure of

1,045,000 metric tonnes is the highest production ever in this country and it happened in 2020/2021. But that is not the issue. The issue today is about the producer price and that is what the farmer wants to hear.

Mr Speaker, in 2016, the farm gate price in this country was GH¢475 only. It took Nana Addo Danquah Akufo-Addo to move the farm gate price from GH¢475 to GH¢3,100. They promised to pay the cocoa farmer a minimum of GH¢6,000. They have not been able to redeem that pledge. Instead of them maintaining what they came to meet, they have now reduced what they promised, GH¢3,625, to GH¢2,587, and they are giving all manner of excuses. The first excuse they are giving is that they are unable to go to the international market to borrow because Nana Addo Danquah Akufo-Addo's Government defaulted in the Syndicated Loan. Mr Speaker, I want to ask the current managers of COCOBOD, how much was borrowed and how much was defaulted? The Syndicated Loan was started in 1992/1993 and for over 30 years, COCOBOD has never defaulted. So, if they are claiming that COCOBOD has defaulted in the syndicated loan, they should tell us how much was borrowed and how much was defaulted.

Mr First Deputy Speaker: Hon Member, you have one more minute.

Dr I. Y. Opoku: Mr Speaker, I represent Leadership. Mr Speaker, we want to ask COCOBOD, when they were fixing the producer price, what information did they give to the Producer

Price Review Committee? Mr Speaker, every producer price is based on the achieved FoB price. So, if they know the achieved FoB price, why would you default?

Mr First Deputy Speaker: Hon Member, your time is up.

Yes, Majority Leadership? [*Uproar*]

Hon Members, I proceed to give the floor to Hon Jasaw. It is now 5:59 p.m. You have five minutes.

Dr Godfred Seidu Jasaw (NDC — Wa East): Mr Speaker, thank you for the opportunity to contribute to the Statement made by the Minority and Majority Leaders.

Mr Speaker, it is important that we, as a Parliament, respond in our contribution to this phenomenon by constructively contributing to solutions to the problem that we are witnessing in the country. It is not right that we take political advantages of this situation. The truth is that, Ghana has utilised the Syndicated Loan for the past 32 years. I guess the most plausible question to ask is, how come that in 2023/2024, we could not raise the Syndicated Loan. This is because COCOBOD at that time had mismanaged its finances so much so that it defaulted in domestic cocoa bills, and because it defaulted in domestic cocoa bills, when it floated the request for proposals, no single financial institution responded. And so, it was not a conscious economic pricing model for COCOBOD to start saying they are asking Local Buying Companies (LBCs)

to go and buy. They just could not raise the financing. So, when we say there was a default in syndication, what it means is that the economic parameters that COCOBOD ran did not even allow it to be able to raise the syndication.

Mr Speaker, Government has responded to the situation. It has recommended by announcing reforms. Now, these reforms, people say that why is it that COCOBOD did not forward sell? COCOBOD could not forward sell because they had actually defaulted in paying the loans. In fact, by the time the NDC took over in January 2025, we had rolled over cocoa beans of 333,000 metric tonnes. These were forward sold the year before at a rate of US\$2,600 per tonne. So whatever production they made, you still had to pay this at that price. And this is the time that the world market price had actually shot up to about US\$10,000. And so, we are actually losing. But these forward sales are contracts that are put together to be able to serve as collateral to raise the money. Now we could not put the contracts together, how do we raise the money?

Mr Speaker, what has happened, which is the reforms that have been announced, are actually far reaching. They are going to respond to the gross mismanagement that has occurred at COCOBOD. And I think—

Mr First Deputy Speaker: Hon Member, you have one minute more.

Dr Jasaw: It is three minutes, Mr Speaker. All right, Mr Speaker, I will yield.

Mr Speaker, so what I will propose that we do is that the record shows that cocoa farmers are not shortchanged because the value of what they are taking is actually commensurate with the economic life that we are living in the country at this stage. Secondly, let us not forget that a lot of the projected production of cocoa beans this year has actually been bought already; 530,000 tonnes have been bought. So, what is left is just about 70,000 metric tonnes and it is not as if they are going to be bought from new farmers. They would be bought from the same farmers. So, these farmers have actually sold part of their beans at that high price. Now it is just a small percentage that is left that will enjoy these new prices.

Thank you, Mr Speaker.

Mr First Deputy Speaker: Yes, Hon Majority Leader, do we take more Statements?

Mr Ayariga: No, Mr Speaker. Let us take the Legal Education Reform Bill, 2025.

6:04 p.m.

Mr First Deputy Speaker: Hon Members, before we move to the Consideration Stage of the Legal Education Reform Bill, 2025, we need to do this correction. We have referred the Constitution of the Republic of Ghana (Amendment) Bill, 2025 to the Constitutional and Legal Committee. However, Article 291(2) says that:

“(2) The Speaker shall, after the first reading of the bill in Parliament; refer it to the Council of State for consideration and advice and the Council of State shall render advice on the bill within thirty days after receiving it.”

So, in line with this constitutional imperative, we will have to do the needful by referring the Constitutional Amendment Bill, 2025 to the Council of State in line with Article 291(2). I so refer. Thank you very much Hon Members.

Yes, the request is that we move to the Consideration Stage of—

Osahen Afenyo-Markin: Mr Speaker, we are all learning. I want to find out from you— So are you looking at Article 291(2) in its absolute terms without referral to any other provision of the Constitution and if so, is it your view that once the referral is made to the Council of State and they come with the advice, Parliament proceeds with consideration of the said enactment without any referral to the Constitutional and Legal Affairs Committee? I just want some clarity on this matter.

Mr First Deputy Speaker: Well, the Constitution is very clear. Article 291 states:

“(1) A bill to amend a provision of this Constitution which is not an entrenched provision shall not be introduced into Parliament unless —

(a) It has been published twice in the *Gazette* with the second publication being made at least three months after the first; and

(b) at least ten days have passed after the second publication.

(2) The Speaker shall, after the first reading of the bill in Parliament; refer it to the Council of State for consideration and advice and the Council of State shall render advice on the bill within thirty days after receiving it.”

So, Hon Member, if the Council of State advised that we should not proceed with the Bill, what happens?

Osahen Afenyo-Markin: Mr Speaker, I want us to proceed on a positivist assumption. That is, the Council of State advising us to proceed. Mr Speaker, I do not think that Article 291(2) is by extension ousting the mandate of this House to appoint or refer matters to a Committee of Parliament. Mr Speaker, Article 291(3) of the said Article provides:

“(3) Where Parliament approves the bill, it may only be presented to the President for his assent if it was approved at the second and third reading of it in Parliament by the vote of at least two-thirds of all the members of Parliament.”

Mr Speaker, the point I want to underscore here is that although there is an express provision that talks about

referral to the Council of State, but if you read (3) talking about approval by Parliament, Mr Speaker, there is a process.

Mr First Deputy Speaker: So, are we at the approval stage?

Osahen Afenyo-Markin: Mr Speaker, let me refer you to Order 238 of our Rules, the Committee on Constitutional and Legal Affairs. It states:

“238. (1) The Committee on Constitutional and Legal Affairs comprises a Chairperson, a Ranking Member, a Vice Chairperson, a Deputy Ranking Member and not more than nine other Members.

(2) The Committee shall

- (a) examine issues related to Constitutional and Legal matters generally;
- (b) have matters referred to it that relate to
 - (i) the Office of the Attorney-General; and
 - (ii) the Ministry of Justice; and
- (c) have jurisdiction to investigate and enquire into the activities and administration of the ministries, departments and agencies under the mandate of the Committee and the investigation and enquiry may extend to proposals for legislation.”

Mr Speaker, I would not want to bother on (c), the main stay of my argument is rooted in (a). I do not want to presume wrongly, but I would want to say that although Article 291(2) talks about referral to the Council of State, I do not dispute that. But we cannot say that once Council of State brings its advice, which advice is for us to proceed, we will straight away proceed with consideration without any input from the Committee on Constitutional and Legal Affairs of Parliament. If we go in that path, then the process of approval, Mr Speaker, you know that in Parliament approval is a process, we may end up truncating it at a point by saying that because the Constitution says that on any constitutional amendment there must be a referral to the Council of State. The mandate of the Committee on Constitutional and Legal Affairs in also looking at such matters is ousted by provision of Article 291(2).

Mr First Deputy Speaker: Hon Minority Leader, with all due respect to you, if you read in between the lines of the Constitution, I do not think there is a problem with the constitutional provision. We do not also have any problem with our Standing Orders. You know, when it comes to these matters, I rank Hon Kwame Anyimadu-Antwi, and this is not the first time we will be doing a constitutional amendment in the Eighth Parliament.

As a Committee responsible for Constitutional and Legal Affairs, one of the requirements for you to proceed with a Bill seeking to amend the Constitution is to ask whether or not there is an advice

from the Council of State. So why would you then be proceeding to do a Committee's work when there is no advice from the Council of State? So, the approval that you are talking about is the approval that we do when the advice is ready. The Committee has done its work; the Report has come here for a Second Reading of the Bill. That is the stage that we need the required number to approve. If we do not have the required number, then that is the end of the process.

Osahen Afenyo-Markin: Mr Speaker, I think the question that was begging for an answer has finally received an answer. Because Mr Speaker, the impression I got was that yes, because of Article 291(2), once the Council of State comes with an advice to proceed, there will be no Committee on Constitutional and Legal Affairs looking into it to proceed. But I think Mr Speaker, you have now explained and I can rest my case.

Mr First Deputy Speaker: Hon Minority Leader, clearly if the Committee on Constitutional and Legal Affairs is going to work on the Bill, one of the requirements that the Committee must ensure that that requirement is met is whether or not the Bill has been referred to the Council of State for advice. So, thank you for your understanding.

Yes, Hon Majority Leader?

Mr Ayariga: Mr Speaker, a simple reading of the clause gives that indication. I do not see anything in the clause that says that Parliament may not take any step. But then, the clause is

quite emphatic that after the First Reading of the Bill, the Speaker shall refer it to the Council of State for consideration and advice. But you see, it says nothing about the effect of the advice. If the advice is that we do not think you should proceed on it, are we bound by that advice or are we simply to be guided by that advice? And so, I think that the practice has been that, we refer it to them, they give their advice, the Committee takes on board their advice and continues to deal with the Bill in the normal course of the business of considering Bills and then we take it through. The only other constitutional requirement is the vote requirements that there must be at least two-thirds of Members voting. So, I think this is something we have done over and over again and the Speaker has further explained.

6:14 p.m.

Mr First Deputy Speaker: Hon Majority Leader, at the end of the day, it is an advice, and we all know the effects of an advice. Whether the advice is positive or negative, the Committee must ensure that this constitutional provision is complied with and the advice is on record. Then it will be part of the Report that the Committee will be bringing for a Second Reading of the Constitution of the Republic of Ghana (Amendment) Bill, 2025. You know, I have been involved in this several times.

Mr Dafeamekpor: Mr Speaker, by way of a guide, so in this case, which referral comes first? Is it the one to the Council of State before the Speaker, when they return the Report within 30

days, then the Speaker will now direct that the advice from the Council of State be added to the Bill, and now referred to the Committee?

So, we all need a guide in this matter.

Mr First Deputy Speaker: Looking at the provision, it says, “The Speaker shall, after the First Reading of the Bill in Parliament, refer it to the Council of State.”

So, what is the Speaker supposed to do? That is why I said that it has been referred to the Council of State, and they are consequentially to advise within 30 days. So, the Bill is also referred to the Committee. The Committee will have to wait and abide by the advice from the Council of State so that the Committee can do a holistic work and Report. The Committee cannot report to the House before the advice from the Council of State.

Mr Ayariga: Mr Speaker, I agree with you, but when you say “...abide by the advice...” I think we should make it “...receive the advice...”

Mr First Deputy Speaker: So, the right phrase to be used should be “...take the advice into consideration...” during the Consideration of the Bill.

Hon Members, the Legal Education Reform Bill, 2025 at the Consideration Stage.

Hon Members, I think we stopped at clause 21 of the Bill during the

Consideration the last time. So, we move to clause 22.

BILL — CONSIDERATION STAGE

Legal Education Reform Bill, 2025

[Resumption of Consideration from 12/02/2026]

Clause 22 — Standards for Accreditation of Universities

Chairperson of the Committee (Mr Shaibu Mahama): Mr Speaker, amendment proposed, subclause 1, line 3 *delete* “cause”.

Mr First Deputy Speaker: So, what is the new rendition?

Osahen Afenyo-Markin: Mr Speaker, respectfully, clause 22 is in the original clause 19, correct?

Mr First Deputy Speaker: Yes.

Osahen Afenyo-Markin: All right. I just wanted to be sure and follow.

Mr First Deputy Speaker: Clause 22 is the original Clause 19.

Hon Members, the correct rendition is as per clause 22. So, the Winnowing Committee has improved on the original clause 19, and that is what we are having on clause 22.

Mr S. Mahama: Mr Speaker, the new rendition is “accreditation of

universities to offer or provide law practice training.”

I so move.

Mr First Deputy Speaker: Any further amendments?

Yes, Hon Kingsley Nyarko?

Prof Nyarko: Mr Speaker, I would like to find out from the Chairperson of the Committee, if we are accrediting Law Practice Training, could it not be a Law Practice Training Programme? Why Law Practice Training and not Law Practice Training Programme? So, I need clarification on that. We want to accredit a programme, and we are saying that the Council, in collaboration with GTEC, and universities, would provide the Law Practice Training. I am saying that why not the Law Practice Programme?

So, I need clarification on that.

Mr First Deputy Speaker: Hon Member, you raised this issue the other time, and the answer, if not you, another person, was that the programme entails more than the practice training; that was the answer provided on the Floor of this House.

Prof Nyarko: I was not here.

Mr First Deputy Speaker: Are you sure you were not here?

So, the issue has been raised and clarified by the Sponsors of the Bill.

Prof Nyarko: I have another—

Mr First Deputy Speaker: Are you sure you were not the one who raised this particular issue?

Prof Nyarko: No, Mr Speaker, maybe it was somebody else who looks like me or who resembles me.

Mr First Deputy Speaker: You are my very good Friend, so I know you very well.

Prof Nyarko: Mr Speaker, still on clause 22, I want to propose a further amendment to clause 22(2) (a), “Library resources that serve teaching”—

Question put and amendment agreed to.

Mr First Deputy Speaker: Chairman of the Committee?

Mr S. Mahama: Mr Speaker, amendment proposed. Subclause 2, paragraph (b), *delete* and *insert* the following:

“(b) a physical and an electronic law library that has the following:

- (i) relevant national and international law reports;
- (ii) books relevant to the law courses offered in the university;
- (iii) legislation enacted in the country, including Acts of Parliament, legislative instruments and constitutional instruments;

- (iv) articles and journals on law;
and
- (v) law dictionaries.”

I so move, Mr Speaker.

Mr First Deputy Speaker: Yes, it is for the consideration of the House.

Prof Nyarko: Mr Speaker, I have an amendment on clause 22(2) (a) “library resources that serve teaching...” If we bring teaching, there should be learning. Because now we are saying “teaching, research and other educational objectives of the university, including access to ...”

Mr First Deputy Speaker: So, let me put the question on the consequential amendment. Then you can come in with your amendment.

Question put and amendment agreed to.

Mr First Deputy Speaker: Yes, Hon Kingsley Nyarko, your amendment.

Prof Nyarko: My proposed amendment is that after “...teaching...”, we should insert “...learning...” So, the new rendition for clause 22(2) (a) becomes:

“... library resources that serve teaching, learning, research and other educational objectives of the institution, including access to online resources and hard copy legal materials.”

Mr Speaker, apart from the “...learning...”, I have issues with

“...including access to online library resources and hard copy legal materials”. I am also suggesting that apart from inserting “learning”, we can make it “learning and other educational objectives of the university, including access to both online and physical law libraries”. Because if we say “...online library resources and hard copy legal materials”, hard copies are found in the physical library. In the physical library, we have the environment, the hard copies, and all that.

So, I think that apart from inserting “learning”, we can make it “...including access to both online and physical law libraries”. That will encompass the digital aspect that involves the online learning and the physical aspect that deals with the hard copies and other materials like journals and all that. These are my proposed amendments to clause 22(2)(a).

Mr First Deputy Speaker: Yes, Chairman of the Committee.

Hon Members, in the meantime, let me take two minutes’ suspension.

6:26 p.m. — *Sitting suspended.*

6:28 p.m. — *Sitting resumed.*

Mr First Deputy Speaker: Hon Members, kindly resume your seats. Yes?

Osahen Afenyo-Markin: Mr Speaker, it appears that the entire Majority frontbench is empty. We cannot do Government Business when the entire

Majority Frontbench is empty. Very empty.

Mr First Deputy Speaker: Good observation. Can we have available Leaders? Yes, Chairperson of the Committee.

Mr Shaibu Mahama: Mr Speaker, may I request my good Friend to repeat the new rendition and proposal, please.

Prof K. Nyarko: The rendition I am proposing to clause 22(a) is,

“library resources that serve teaching, learning, research, and other educational objectives of the university, including access to both online and physical law libraries.”

Mr First Deputy Speaker: Hon Member, are you proposing that “research” be deleted?

Prof K. Nyarko: Mr Speaker, I am proposing that after teaching, we should insert “learning”. “Research” should still be there.

Mr First Deputy Speaker: Very well. So, take the new rendition.

Prof K. Nyarko: Mr Speaker, it will read:

“library resources that serve teaching, learning, research, and other educational objectives of the university, including access to both online and physical law libraries.”

Mr Shaibu Mahama: Mr Speaker, while I agree with my good Friend in adding “and learning”, I would suggest that he takes away the word “both” because of the conjunctive in library resources and hard copy. There will be no need to put “both” there. So, the new rendition, if I may help him, will be,

“library resources that serve teaching and learning, research, and other educational objectives of the university, including access to online library resources and hard copy legal materials.”

Prof K. Nyarko: Mr Speaker, the issue I have with his disagreements is that we have online or digital or electronic library. In the same facility, we also have the physical library, but if you say online library resources and you say hard copy legal materials, these hard copy legal materials are found in the physical library. It is quite untidy if we keep hard copy legal materials.

I am saying that it is more appropriate to replace—

Mr First Deputy Speaker: Attorney-General and Minister for Justice, what is your view on this?

Dr Dominic Akuritinga Ayine: Mr Speaker, I do not want to be seen disagreeing with the Winnowing Committee on this matter, but I think the Hon Member is right. The rendition in paragraph (a), in essence, captures what is in paragraph (b). It is repeating exactly the same things, but actually now

elaborating on the set of materials that should be contained in the library.

Mr First Deputy Speaker: Can we not be consistent by using a physical and electronic law library?

Second Deputy should now take the Chair.

Yes, Hon Kyei Asamoah?

Dr Fred Kyei Asamoah: Mr Speaker, I was proposing that instead of subclause 2(a), having including access to online library, when we come to paragraph (b), it has been stated again. I would rather end it at “objectives of the institution or the university”, since there is a consequential amendment already. Then come down and make it physical. So, it will read:

“library resources that serve teaching and learning, research and other educational objectives of the institution.”

Then we can end it there. We also stated at paragraph (b), “physical and electronic library that has the following:” It is sort of repeating the second bit of paragraph (a) and (b). We can delete that part, and end it at the “...objectives of the university”, then we can come to physical and electronic. This particular clause is more of the Legislative Instrument which operationalises this part of this function.

For me, even the entire standards of accreditation are operationalisation of one of the functions under the functions

of the council. So, if we want to come here, I would rather end it at the “institution”, and the second bit of it is what you are seeing in paragraph (b). I will cut that one off and rather come to a physical and electronic library, which they have also given some details beneath it.

6:34 p.m. — [HON SECOND DEPUTY SPEAKER, MR ANDREW ASIAMAHO AMOAKO, IN THE CHAIR]

Prof K. Nyarko: Mr Speaker, when we look at subclause 2 of clause 22, the paragraph (a), library resources that serve teaching, learning, research and other educational objectives of the university, including access to both, as I said, online and physical law libraries. If we take that one, then the paragraph (b), that talks about a physical and electronic law library, can go. But still, we can have the subparagraphs. So, if the paragraph (b) goes, in essence, we still have relevant national and international law reports that could be found on the electronic or online platform or also in the physical library, books relevant to the law courses offered in the university that can be found on both platforms, legislation enacted in the country, including acts of Parliament, Legislative Instruments and Constitutional Instruments, and all these can still be found either on the electronic platform or in the physical library. So, in essence, paragraph (b) can go, but the subparagraphs of i, ii, iii, iv and v can be captured under paragraph (a). Then we are good to go.

Mr Dafeamekpor: Mr Speaker, I get the sense that Prof Kingsley Nyarko is edging on us. So, I agree with him to the extent that under clause 22 2) (a), “and hard copy legal materials” is what is creating the mischief for him. That is what is creating the problem. We can take that out so that clause 2(a) stands alone without “and hard copy legal materials”. Because this will be adequately catered for under clause 22(2) (b). Once we have a physical and electronic law library that has the following in clause 22(2) (b) (i), (ii), (iii), (iv) and (v), I am sure it is for the avoidance of doubt.

So, we are specifying the nature of academic materials one would find in a physically situated library. We are just trying to compartmentalise the kind of material. If we take the “hard copy legal materials,” they will be adequately catered for under the various numerals under clause 22(2) (b). So, the (b) must stand because it is a description of a certain nature and character of a library. We are actually referring to library *qua* library, going to a very quiet place which adequately resourced to study.

But the one, the (a), is the new nature of libraries that we can find even on our phones. Which are library resources, that serves teaching, research, *et cetera* but they are all online. So, I agree with him that if it is hard copy legal materials, that is a problem for him, that can be taken away, but it will be adequately catered for under (b) and its various categories.

Mr Second Deputy Speaker: So, Chairperson, what did the Winnowing Committee actually agree on?

Mr Dafeamekpor: We agreed on what has been advertised. But Mr Speaker, we know that when it comes to the Floor, the Floor is supreme.

Prof Nyarko: I am on the Winnowing Committee. But when we met, the Chairperson of the Committee brought some proposed amendments. In fact, those amendments had made the previous Bill better. So, the understanding was that we should merge them into a revised document for us to look at on the Floor. Ideally, when we go to the Winnowing Committee, Members who have proposed amendments and such amendments are advertised in the *Order Paper*, they are invited to the Winnowing Committee for them to justify their proposed amendments for the Committee to either accept or reject. If it is rejected, they can still come back and debate.

But in this case, all the amendments that we are seeing came from the Committee, although we saw a vast improvement of those proposed amendments over the original documents. That is what happened.

Mr Dafeamekpor: When we work at the Winnowing Committee, our duty under the rules is to enhance all the amendments that would have naturally been taken on the Floor. But we cannot be here and propose amendments, so we have to confer all those amendments under the name of the Chairperson of the

Committee. So, the final product of the Winnowing Committee is also converged into the final product of the Committee of Constitutional and Legal Affairs. If we read the Rules, our mandate is to tidy up what the Committee naturally would have brought here. So, we are actually helping to lessen burden of the Committee. So, it is not an amendment that—winnowing is to separate the grain from the chaff. That is the sense; it is an agrarian term. So, Prof Nyarko should appreciate that. The work that we have done still stands in the name of the Committee; it is still the Committee's work.

Mr Second Deputy Speaker: So, Hon Members, if we cannot be in consensus, then probably—is it fine? Very well. Will we put into question?

Mr S. Mahama: No, it is subject to the further amendments to enhance Prof Nyarko's. The new rendition will be, "Library resources that serve teaching and learning, research and other educational objectives of the university, including access to online library resources and hardcopy legal material". I so submit.

Dr A. K. T. Mahama: Mr Speaker, the Chairperson of the Committee has a different rendition from what was proposed. The first defect is that he is stating "that has teaching and learning" but "and" is not part of his proposal. He is proposing "teaching, learning, research and other educational objective of the university". So that is the first difference that I see from his proposed rendition.

His proposal is "library resources that serve teaching, learning, research and other educational objective of the university"; that is the first leg of the proposed amendment. The second leg is "including access to both", which himself and myself disagree on the use of the word "both" "including access to both online educational resources and" he is proposing the deletion of—*[Interruption]*—yes, "including access to both online and physical library resources". So that is his proposal.

The problem we have is that part of whatever we are discussing now, is captured under clause 22(2) (b), so we want to make sure that clause 22(2) (a) stands out clearly without conflicting seeming to be a repetition of clause 22(2) (B), and that is the conundrum we want to, unravel with this particular proposed amendment. I would want the Chairperson of the Committee to take into consideration this bit about his explanation, to do away with the conjunctive word "and" and possibly take into consideration "online and physical library resources", so that we will do away with the "and" part of it. I do not know whether the Chairperson of the Committee gets this point.

Mr S. Mahama: I thought the good Prof was trying to tell us that teaching and learning is a term of art. Is that the case? Or he wants us to disjunct it?

Prof Nyarko: I am just speaking from experience. I once headed a regulator —

Mr Second Deputy Speaker:
Experience from the classroom, teaching.

Prof Nyarko: Both teaching and heading the National Accreditation Board. Any time we went for inspection, the library has two components, the electronic and also the physical library. The physical library houses the books, the journals, encyclopaedia and all that. Some of these same reports can also be found on the digital library. My point is that the new rendition that I proposed was “library resources that serve teaching, learning, research and other educational objectives of the university, including access to both online and physical law libraries.”

If we say hard books, the hard books are found in the physical library.

6:44 p.m.

I do not have any problems if we decide to keep the hardcopy legal materials. I do not have any problems with that.

My point is that these hardcopy legal materials are found in the physical library. The books are in their building. But the electronic ones are not found in the form of books; they are online resources, and they are softcopies. These are the issues that I am raising. But it is subject to the Sponsors to disagree or agree. So, I am saying that if it finds favour before the Sponsors, their new rendition should be:

“Library resources that serve teaching, learning, research, and

other educational objectives of the university, including access to both online and physical law libraries.”

Mr Second Deputy Speaker:
Chairperson, is that rendition alright?

Mr Shaibu Mahama: Mr Speaker, I think it is important to distinguish between clause 22(2) (a) and (b). Clause 22(2) (a) is talking about library resources, and (b) talks about the physical; the infrastructure. That is the brick and mortar or the cloud, which is the library itself. So, if we attempt to mix the two—let us treat (a) as dealing with library resources, and then (b) will deal with the physical library. That is the brick and mortar and/or cloud.

Dr Ayine: Mr Speaker, the basic point here is to ensure that in accrediting a university to run the law practice course, that university has the requisite resources, including a physical library, hard copy, and online materials for teaching, learning, and research. That is the import of what we are seeking to capture in (a) and (b). But I think that the Hon Member has a point with respect to the way we have separated the two.

Mr Speaker, I get the Chairman when he is emphasising that (b) seeks to ensure that you have the physical infrastructure. But at the same time, (b) also captures some of what is required in (a). For instance, if we say relevant national and international law reports, these can be either physical copies or electronic, such as LexisNexis or Westlaw online materials. So, I think it is the rendition that is creating the confusion. But the

essence of what we are seeking to capture in the clause is to say that the university must have the hard copies and the online material, as well as a physical library. Because there are some universities that do not have very well-structured places where the students can sit and learn. We do not want any accreditation to go to such places.

That is the, that is the essence of what we are seeking to capture here. Now, the experts in covering this drafting should tell us how to render it, so that we capture the spirit of the provision.

Mr Second Deputy Speaker: Like the Attorney-General said, the import is almost established but I think the rendition is what we are all struggling with.

Hon Patrick Yaw Boamah?

Mr Boamah: Mr Speaker, respectfully, I do not see any problem with the rendition. We spent three days with all the Deans from the faculties looking at this particular clause. Mr Speaker, the essence can be found in the new clause 22(2) (a), which has the caption of standards for accreditation of universities. It deals with the setting up of online library resources, hard copies of legal materials. It went further to (b) to make a distinction, making sure that what is required of a university's library when they are setting up a physical library is well provided for, as well as when setting up the requirements for an online library, as the Attorney-General said about LexisNexis and Westlaw.

So, I do not see any problem with this. They wanted to be sure that no accredited university shortchanges the accreditation Board when setting up a library. That is, the university must have a physical library, and an online library, should the university decide to have the materials listed. We were very particular about this, and the Deans were also very particular about this, that we do not want to have any half-baked libraries being set up by the school. So, I do not see any problem with it. It helps the A-G's programme.

Mr Second Deputy Speaker: Hon Members—

Mr Anyimadu-Antwi: Mr Speaker, I have been quietly listening to the Professor, and I would also want to agree with Hon Patrick Yaw Boamah. Mr Speaker, for instance, I had taught at a law university where they had a very scanty library. They did not have the electronic version of the library. Now, we are talking about teaching and learning materials and there should be a library where we should have those materials. Apart from that, we are also talking about the physical library, which must exist.

As part of this physical library—For those of us who have studied law at foreign universities, we could even plug in our computers, connect to the main library system, and then access a wide range of books, law reports, and other reference materials. So, I think that all the necessary provisions to ensure that institutions are properly assessed for

compliance with our requirements have been adequately captured. If the proponent of the amendment has anything else apart from what we anticipate, let us hear him. Otherwise, I will pray that he may consider withdrawing his proposed amendment so we can move forward.

Mr S. Mahama: Mr Speaker, while I agree entirely with my Colleagues, I think that we should still add “learning” after “teaching”. So, the new rendition will be:

“library resources that serve teaching, learning, research and other educational objectives of the university, including access to online library resources and hard copy legal materials;”

Mr Speaker, I so move.

Mr Second Deputy Speaker: Very well. Deputy Minority Leader?

Ms Patricia Appiagyei: Mr Speaker, I really agree with the current position, but I have a concern. I do not know whether it is imperative that this provision looks at the physically challenged. If there is a need to come out with a particular clause that will insist on the provision for the supply of physical infrastructure, then there should be a provision where we address the issue of the physically challenged.

Thank you.

Mr Second Deputy Speaker: Very well, thank you so much.

Prof Nyarko: Mr Speaker, listening to my Seniors with huge legal brains, who am I? I yield to their superior knowledge and judgments regarding the issue I raised. So, I go by the new rendition by the Chairperson of the Committee. I so submit.

6:54 p.m.

Mr Second Deputy Speaker: Very well.

Chairperson of the Committee, Hon Deputy Minority Leader raised a fundamental issue. I do not know whether it has been captured.

Mr Shaibu Mahama: I think she has raised a very valid point, and the regulations will take care of that.

Mr Anyimadu-Antwi: Mr Speaker, even that, when we are talking about library resources that serve teaching, learning, research, and other educational objectives of the university, we would have to look at the syllabus of the university, and if it involves the physically challenged, so be it. Then they should have the material. What we have is covered. So, Mr Speaker, may put the question.

Mr Dafeamekpor —*rose*—

Mr Second Deputy Speaker: Hon Member, you have taken so much—

Mr Dafeamekpor: Mr Speaker, in any case, regulation can tidy that up. We can demand, as part of the checklist and standards and requirements, rather than

setting up a physical library to take care of the physically challenged in society. So, we are good to go.

Dr A. K. T. Mahama —*rose*—

Mr Second Deputy Speaker: Yes, Hon Tiah Mahama?

Dr A. K. T. Mahama: Mr Speaker, I have a difficulty with the explanation that we should bury it under regulations. Mr Speaker, when you read the (a), the part that talks about including access, it is showing emphasis in that provision. Nothing will change if we say including access to disability-friendly whatever and continue. Nothing will change in the Bill. The reason we are deliberately legislating is because regulation cannot be superior to this statute. That is the first thing, and that if we can have something clearly stated in the statute that there must be disability-friendly access, then when we come to the regulation, we then try to implement what we mean by disability-friendly. That is what the regulation will take care of. But if we do not legislate the issue about disability-friendly, and we use regulation to address that, if it is not contemplated within the law, we cannot make regulation for that.

Mr Second Deputy Speaker: Your point is well made.

Dr A. K. T. Mahama: Mr Speaker, I have a proposed amendment. I propose that the new rendition should read:

“library resources that serve teaching, learning, research and other

educational objectives of the university, including access to disability-friendly online library resources, and hard copy legal materials”

Mr Speaker, thank you very much.

Mr Second Deputy Speaker: So, he just inserted “disability-friendly”.

Mr Dafeamekpor: Mr Speaker, there is nothing like “disability-friendly online library”. *[Interruption]* Wait. No. Mr Speaker, an online or digital or e-library is accessible to all, even children. It is digitally designed. That is online library—

Mr Second Deputy Speaker: I think the Hon Deputy Minority Leader’s issue has to deal with the physical.

Mr Dafeamekpor: Yes, but he is introducing it and using the adjective “online”. That is where he did the introduction. So that is why we are saying that in enacting this law, this House has in its contemplation the physically challenged or persons with disability in mind. The suggestion is that we are enacting this law without them in mind, and so we must be specific. No. We already have them in contemplation in enacting this. That is why we are saying that with the regulation, we will specify. The regulation will give you guidelines.

So, Mr Speaker, I believe that Dr Kabiru Mahama should yield. The Attorney-General and Minister for Justice has something to say so that we can make progress.

Mr Second Deputy Speaker: I will finally listen to the Attorney-General and Minister for Justice, then we put the question.

Yes, Attorney-General and Minister for Justice?

Dr Ayine: Mr Speaker, I just wanted to draw the Hon Member for Walewale's attention to the fact that Clause 47 of the Bill makes provision for persons with disability. So first of all, clause 46 provides for non-discrimination on grounds of disability, and then clause 47 talks about admission measures for persons with disability. And Mr Speaker, if I may refer to clause 47(2), it says:

“In furtherance to subsection one, an accredited university shall adopt special measures to enable students with disability pursue legal education, and maintain adequate infrastructure which are accessible to persons with disability”.

Mr Speaker, we are very sensitive at the Attorney-General's Department when it comes to matters of discrimination.

Dr A. K. T. Mahama —*rose*—

Mr Second Deputy Speaker: Thank you, Attorney-General and Minister for Justice.

So, Dr Kabiru Mahama, please. I will give you the opportunity to abandon the proposed amendment.

Dr A. K. T. Mahama: Mr Speaker, I will abandon it in view of the explanation provided by the Attorney-General and Minister for Justice.

Mr Second Deputy Speaker: So, Hon Members, now we are in consensus, so I will put the question.

Question put and amendment agreed to.

Dr Asamoah: Thank you, Mr Speaker.

If you look at clause 22(c), we talk about requisite physical infrastructure necessary for running the law programme. And if you go to the functions, at clause 3(g), I made a proposal of “including programme or course of study”, and at that time, it was put to vote and it was rejected. It looks like we are interchanging the use of “programme” and “course of study”. So, to cure that mischief, I propose we include the “course of study”. So, in some instances, we are using programme, and in other instances, we are using course of study.

I want to hear what the Chairperson of the Committee has to say, whether we could use both. Because I am looking at the GTEC proposed law, and it also looks at both course of study or programme. So, for consistency—

Mr Second Deputy Speaker: Very well. Chairperson of the Committee, that is his observation on clause 22(c).

Mr S. Mahama: Mr Speaker, I am of the firm belief that we should not change anything under clause 22(c). We should leave the rendition as it is.

Mr Second Deputy Speaker: Chairperson of the Committee, you believe that the rendition should stay?

Mr S. Mahama: Of course, Mr Speaker. When we started with the sectional notes, that is the reason we deleted the word “course”. So, the programme becomes a law programme.

Dr Asamoah: Mr Speaker, respectfully, they are different.

So, if you say law programme, and in the functions at clause 3(g), you talk about course of study here, because there are programmes that will be run under the course of study. So, if we have to cover both, then it will be better to be an umbrella covering for the course of study or the programme. So, Mr Speaker, that is why I am proposing that we can leave one out.

7:04 p.m.

If you go to functions of the Council under 3(g)—*[Interruption]* Yes, I am going back to it because at that point I proposed that we change it to “programme” but we stayed with “course of study” and here we are coming back again using the programme that we rejected earlier. So that is why I am stating here that we can use “programme” or “course of study”.

Dr A. K. T. Mahama: Mr Speaker, there are two things here. In the functions, we talked about the professional law course. That was what we had in contemplation as a function of the Council. But here, because of the argument that was advanced that the programme is not just interested—

Mr Dafeamekpor: Mr Speaker, at this stage, things work mechanically. So, I suggest that we deal with—*[Interruption]* So you are contributing to his proposed amendments? *[Interruption]* All right.

Dr A. K. T. Mahama: Mr Speaker, I am saying there are two things here. I support the current rendition. Let me state from the beginning that the current rendition as it is should stay. And I am not trying to distinguish what he meant by “course” in the functions and what we meant by “programme” in this particular context and why the two can stay in the same Bill without any conflict. When we made reference to “course” under the function, we were having in contemplation the regulation of the professional law course or professional legal training course. That is what we had under the function. But here they are arguing that even the law programme itself, there must be some minimum standards that you have to do in collaboration with GTEC. And the law programme here is in reference to that. That if you are going to accredit an institution to run the professional law practice training, that particular institution should have a standardised legal law programme. And that is why this particular provision is found here

and I think that, on the basis of that particular explanation, it is fine to have “course” in that particular first instance and have “programme” in the second instance. So, the point I am making is that I disagree with the proposal.

Prof Nyarko: Mr Speaker, indulge me. I may be wrong but at least I spent some time to go through the Bill so my proposed amendment might be correct or wrong. So, I want to suggest an amendment under the (b)—

Mr Second Deputy Speaker: Is it (c) or (b)?

Prof Nyarko: Mr Speaker, (b) because we did not even handle (b), then we went to (c).

Mr Second Deputy Speaker: But if there is nothing at (b), then obviously—

Prof Nyarko: No, I have something at (b).

Mr Second Deputy Speaker: All right, let us hear you.

Prof Nyarko: Mr Speaker, we have listed some documents that should be found in the electronic and physical library. And I am thinking that if we could have (vi) that makes provision for dissertations and unpublished law manuscripts relevant to the law courses or programmes. I am saying this because at times we have students who come up with very good dissertations and manuscripts, but we do not even make good use of them but some are cited. And my point is that apart from these

documents that are relevant, why do we not also think about including dissertations and unpublished law manuscripts that are relevant to the law course or programme? This is an addition I am proposing.

Mr Second Deputy Speaker: Mr Chairperson, the Hon Member’s proposal is to also take into consideration dissertations and unpublished manuscripts, and I do not know what your pleasure is.

Mr Dafeamekpor: Mr Speaker, to specify dissertations is a bit too nitpicky. I am saying this because you are a man in academia. Implied in these, books relevant to the law courses offered in the university and also articles and journals on law, law dictionaries and library resources. All these materials include dissertations at any level. So, yes, articles among others are work in academia. If you say dissertations, do we speak of postgraduate dissertations? Do we further break it into PhD level dissertations or master level dissertations? So, I would rather love if he had added periodicals. If we had included periodicals somewhere in there, that would have been fine. But they are all parts of the resources. So, Prof, with this one, let me plead with you that we cannot legislate with mathematical precision. We can actually use the regulation to specify when this becomes section 22—

Prof Nyarko: I agree with you that we could add periodicals. But somebody coming from academia—Senior, you have been teaching there and you will realise that there are very good

dissertations and unpublished manuscripts that are not utilised by students. But as academic as I am, at times we read those ones and cite them. They are useful and I am saying that it could be an additional source for students who are studying law. Some of them do not even know that they can even use dissertations and unpublished law materials. So, addition will not harm what is already captured there. So, you can put a Question to it.

Mr Second Deputy Speaker: Hon Prof Nyako, I think my view is that they can all be found as research materials. So, I think it is all right for us to move on. So, Hon Members, we have spent a lot of time on this so, I will put the question on the entire clause 22.

Dr A. K. T. Mahama: We will come to the time that we will skip but when we take time to read these things, the essence is not to filibuster but to help.

Mr Speaker, I have a proposed amendment. In this Bill, there is a conflict between “online” and “electronic”. They are two different things. Online is different from electronic.

Mr Second Deputy Speaker: What is the difference?

Dr A. K. T. Mahama: Good. Online deals with internet. You can google it. I am not – information is very accessible to all of us. Online deals with internet. When something is connected to the internet, that is what we say it is online. When something is using electric circuits, that is what we say it is

electronic. So, for instance, I can have the law report being electronic but it is not online. So, that is why I am saying that when we are in a hurry and we do not take care of these differences, we will be legislating and creating absurdity. Unless, of course, someone here can convince me that online is the same as electronic. And with the greatest of respect, they are different. So, that is the point I am making that if we are referring to online in (a), then we should reflect it in (b) instead of using electronic. If we want to use electronic in (a), then we should stick to electronic. And that is the absurdity I am trying to help the sponsors of this Bill to correct.

Mr Second Deputy Speaker: So, what do you propose by way of rendition?

Dr A. K. T. Mahama: If we are sticking to online in (a), then I propose amendment to (b) so that (b) will read physical and online law library. Mr Speaker, I so propose.

Mr Second Deputy Speaker: Chairperson, is it the pleasure of the Committee?

Mr Dafeamekpor: Mr Speaker, instead of online, I further propose that it should be digital law library. Digital in the sense that he just made the point that something can be electronic but not online. For online, you need some energy to operationalise it. But if it is digitalised, you may not necessarily have it online, but you can have access to it. For instance, all the data that we have in this

House, it can be digitalised and flashed on our screen.

7:14 p.m.

It may not be online and available to any other entity outside the House. So, I would rather suggest that we use “digital”, because that is the sense I gather from here. But if the sense is to make it online, then we do not necessarily use online; we use the e-library. If we Google, we would see that they use an e-library, which is also an electronic library. They are electronic in nature. They are inherently electronic. So, it is a bit difficult, but—

Mr Anyimadu-Antwi: Mr Speaker, I think that we do not have to add on, and we do not have to change anything.

Mr Speaker, if we read the new clause 22(2), it says that “the Council shall, in certain standards, under subsection (1), have regard to the availability of clause 22(2) (a) (b) and (c). And then clause 22(2) (a) talks among other things about an online library. Then the (b) talks about the electronic law library. So, I agree with the Hon Member that they are not the same thing, but to the extent that both have been covered, the Council, in setting standards would look at all these, it means that we have covered all the parts. So, we do not have to change it, we do not have to juxtapose ways here. We have covered online and we have covered electronic, because we are talking about physical systems. So, if it is the physical system, these are the

materials, which are the electronic ones that we want to have. And if it is, the e-library, then these are how we want to cover it. So, both have been covered exhaustively.

I think that Mr Chairperson must move this.

Mr Second Deputy Speaker: Thank you very much for your explanation.

Hon Members, let me put the Question on clause 22—

Osahen Afenyo-Markin: Mr Speaker, on clause 22, I just want to propose an amendment on the (c), “the requisite infrastructure...”

Mr Speaker, I propose that we qualify “the physical infrastructure...” to include disability-friendly— *[Interruption]* No, because I was told that we want to do it as part of the regulation. Read that rendition because it is not—

Mr Second Deputy Speaker: It has been captured. There is a separate clause that deals with that.

Osahen Afenyo-Markin: Which clause is that, Mr Speaker?

Mr Second Deputy Speaker: It is on clause 47.

So, while you are going on, I will put the Question—

Osahen Afenyo-Markin: Mr Speaker, what exactly is he saying that it

has been captured? We are dealing with physical infrastructure.

Mr Speaker, when we go to some of these institutions, there are lecturers here. In Ghana, disability-friendly infrastructure is non-existent. He should read it. If he says it is provided somewhere, he should read it.

Mr S. Mahama: Clause 45 [sic] — Admission measures for persons with disability

“(1) An accredited university may adopt special admission measures for the purpose of increasing the representation of persons with disability in the legal community.

(2) In furtherance of subsection (1), an accredited university shall

(a) adopt special measures to enable students with disability pursue legal education;

(b) maintain adequate infrastructure which are accessible to persons with disability; and

(c) make any other provision to accommodate persons with a visual, hearing or any other form of impairment.”

Osahen Afenyo-Markin: Mr Speaker, that provision deals with non-discriminatory admission measures. And then it goes further to talk about admission measures for persons with disability. These are separate in form and shape from the standards for accreditation of universities.

Mr Speaker, my submission is that when a person wants to have the criteria for accreditation, this must be fundamental. It should be part of the inspection. They should also cite the physical infrastructure at the various universities. Having disability-friendly structures should be part of the criteria for the accreditation. So, it should be provided. Instead of talking about admission measures for disability. The difference between what we are reading in clause 45 and clause 22 is that there is no prerequisite —

They have different headings. Let us deal with the fundamental issue. The fundamental issue here is the standard for accreditation. In all these universities abroad, the issue of consideration when it comes to disability is very fundamental. And I am saying that if in the standard for accreditation, we are saying that there must be “requisite physical infrastructure necessary for running the programme and operations of the university...”, it is proper to qualify it to add that “requisite physical infrastructure with disability-friendly facilities...” So, I just want to *insert* “disability-friendly facilities” before “...necessary for running the programme and operations...”

Mr Second Deputy Speaker: Very well. Chairperson of the Committee, is it possible to import clause 47(b), “maintain adequate infrastructure, which are accessible to persons with disability”? Can we import it into clause 22, so that it becomes part of the standard for accreditation?

Mr Dafeamekpor: Mr Speaker, there is a whole statute on that already.

Mr Ayariga: Yes, there is a statute on that.

Mr Dafeamekpor: So, what we have done with this legislation is to craft a whole session for that. But if he is insisting, we have a disability act, and there is no way— *[Interruption]*

7:24 p.m.

Mr Speaker, the Hon Leader has made his point, so he should also listen to me make my point. I am saying that it means that at every stage of the requirement in this Legislation, we may have to insert some provision to cover persons with disability. It is not really necessary, and that is not how we legislate. Once there is a provision to cater for their interest, it suffices. Especially when we are asking the Minister that within 10 months— Normally we do not do that; we say 12 months, but now we are saying that within 10 months, they must bring Regulations to give effect to this. In the Regulations we provide guidelines to fine-tune these things. It is needless to say that because this provision is on standards for accreditation, we must willy-nilly insert a provision to cater for the interests of the persons with disability, as though we do not have them in contemplation. We do. When the standards are set, it will specify exactly the checklist to tick in order to get accredited.

Mr Eric Edem Agbana: Mr Speaker, when we look at clause 2(e), I have a proposed amendment that the balance student-lecturer ratio—

Mr Second Deputy Speaker: Hon Member, hold on. Let us finish with this amendment.

Mr S. Mahama: Mr Speaker, in appreciating the concern of the Hon Leader, we have to start from the preambular statement, and that is from subclause 2. The headnote says, “Standards for accreditation”, and clause 22(1) sets a certain threshold. Subclause (2) says that the council in setting the standards under subclause (1) shall have regard to the availability.

Mr Speaker, if we now transpose a statement to paragraph (c), it reads, “requisite physical infrastructure”. The word “requisite” encompasses. “Requisite” means that pay attention to available legislation that has to do with disability and other laws. So, have regard to the availability of requisite physical infrastructure— Requisite physical infrastructure will include provision for disability, and provision for all other things. That is defined in those three words we see, “requisite physical infrastructure”. Mr Speaker, there is no point in changing anything in this. Hon Leader, respectfully.

Osahen Afenyo-Markin: Mr Speaker, I respect the views expressed. Let me put this across. To the extent that the Chairperson has explained that the phrase “requisite physical infrastructure” as used is a term of art that explains an

inclusive sort of structure to also mean that that structure itself would be disability friendly. Mr Speaker, I am sure when any court of law is called upon to interpret this, due regard will be given to this debate. But is it not also alright to bring clarity if it means being superfluous? Why would we get the matter hidden when we can make it open?

The explanation he has given is simply that, when the draftsman stated requisite physical infrastructure, that phrase implies that the infrastructure must be disability friendly. That is what it says. But I am saying that I would yield to him, provided that at any point in interpretation, the records of this House will be a reference point that this is what the Legislators meant when they used this phrase in this enactment. Mr Speaker, it has happened before in the famous *Mensah v The Chairman, Electoral Commission and Anor [2015] GHASC 148*. It was the debate of this House that aided the Supreme Court. I am happy that the Chairperson has explained that this phrase “requisite physical infrastructure also means that that physical infrastructure, that building, must have a disability friendly facility. That being said, I rest my case.

Question put and amendment agreed to.

Clause 22 as amended ordered to stand part of the Bill.

Osahen Afenyo-Markin: Mr Speaker, sorry to take you back one step. Just indulge me. On the sources of

funding, I wanted to just do something quickly, if you would.

Mr Second Deputy Speaker: Is it on Clause 22?

Osahen Afenyo-Markin: No. Mr Speaker, I am taking the House back. The funding, you know, just—

Mr Second Deputy Speaker: Hon Leader, do you know something, note it down. When you can—

Osahen Afenyo-Markin: Mr Speaker, we can look at this. Something minor. It is something minor. It is not anything—

Mr Second Deputy Speaker: Hon Leader, let us do it this way. We can have Second Consideration Stage so that we look at all these things.

Osahen Afenyo-Markin: Mr Speaker, the Leader of the House does not appear difficult this afternoon. Once he says that Second Consideration Stage, we can look at it. It is alright. The records have heard him. *Hansard* has heard him that at the Second Consideration Stage, we would look at it.

Clause 23 — Requirement to obtain accreditation

Mr S. Mahama: Mr Speaker, I beg to move, subclause (1), line 1, delete “A person in charge of a law degree programme of a university” and insert “A university that runs a Bachelor of Laws degree programme”.

Mr Speaker, the new rendition would read:

“A university that runs a Bachelor of Laws degree programme shall not offer or provide Law Practice Training unless a university has obtained accreditation from the Council.”

7:34 p.m.

Mr Dafeamekpor: Mr Speaker, this amendment was in respect of clause 23 (1), but you inadvertently mentioned clause 23(2).

Question put and amendment agreed to.

Osahen Afenyo-Markin: Mr Speaker, that is “Issue of provisional accreditation licence”, correct? Because he keeps changing it.

Mr Second Deputy Speaker: No, that is requirement to obtain accreditation.

Mr S. Mahama: Mr Speaker, Amendment proposed – Subclause (2), line 1, *delete* “person” and insert “university that”; in line 2, *delete* “ten” and *insert* “fifty”; and in line 3, *delete* “twenty” and insert “one hundred”.

The new rendition will be,

“a university that contravenes subsection 1, commits an offence and is liable on summary conviction to a fine of not less than 50,000 penalty units and not more than 100,000 penalty units.”.

I so move, Mr Speaker.

Question put and amendment agreed to.

Osahen Afenyo-Markin: Mr Speaker, do we not think this “10 years” is too harsh? Mr Speaker, the country is moving towards a new sentencing regime, a non-custodial sentencing regime, and we have enactments on that. Why would we now legislate and be looking at a very long period of prison sentence? I do not think there is a proper alignment here. “A fine or ...”

Clause 23 as amended ordered to stand part of the Bill.

Clause 24 — Application for accreditation

Mr S. Mahama: Mr Speaker, amendment proposed, subclause (1), line 1, *delete* “A person in charge of a law degree programme of a university” and *insert* “A university that runs a law programme”.

Mr Speaker, the new rendition will be:

(1) A university that runs a Bachelor of Laws degree programme that seeks accreditation for the university to offer or provide Law Practice training shall submit an application in the prescribed form to the council.

(2) An application under subsection (1) shall be accompanied with

- (a) information on
 - (i) the administrative structure of the university; and
 - (ii) the curriculum and teaching technology, methodology of the university.
- (b) evidence of compliance with the standards set by the council; and
- (c) the prescribed fee.

Question put and amendment agreed to.

Clause 24 as amended ordered to stand part of the Bill.

Clause 25 — Consideration of application

Mr S. Mahama: Mr Speaker, amendment proposed — Subclause (4), *delete* — Mr Speaker, we just want to confer on clause 24 and 25.

Mr Second Deputy Speaker: We are on clause 25, Consideration of application. *[Pause]*

Yes, Chairperson, or should we hold on with clause 25?

Osahen Afenyo-Markin: Mr Speaker, I am not a procedural expert but I want to raise this for us to bring clarity to it.

We have the original paper that was laid, and as a result of winnowing, we have a new document with new

clauses. Is it the case that the new document has been laid? Or we are moving on the presumption that the one that was laid, which has received various amendments so substantial, as a result of winnowing, will continue on that path?

Mr Speaker, I have a difficulty. Because to the extent that the amendments are not minor, what we are dealing with completely changes what was earlier laid. We may have to be careful. It may not be too difficult to relay. A procedural misstep can cause us as a House.

Mr Speaker, the Chairperson knows we are dealing with a completely new document from what we are doing now. But we have had a substantial amendment. Hon Chairperson of the Winnowing Committee —*[Interruption]* Well, he is in charge of winnowing.

7:44 p.m.

My simple issue is that this document we are dealing with now is a completely new document.

If we want to use it as a guide, let us say so. Mr Speaker, in the past, where at winnowing, we had done substantial work leading to a new thinking, that old paper had been withdrawn, and we allowed the new one to be used —

Mr Dafeamekpor —*rose*—

Mr Second Deputy Speaker: Hon Majority Chief Whip, resume your seat.

Osahen Afenyo-Markin: Mr Speaker, he is my junior in this Chamber [**Mr Dafeamekpor:** But I am your classmate?] Mr Speaker, we are talking about this Chamber; House of Parliament. I do not want the Majority Leader to rub it in that he is also a senior to me, so I will not pursue this matter. Mr Speaker, my Colleague, Hon Dafeamekpor, must allow. We have precedence, and this House works with precedence. We work with our own conventions and practices. This Bill, at winnowing, has seen massive changes, and he concedes to that. There is a whole confusion.

Mr Speaker, I am of the view and I respectfully submit firmly and in all humility that it will be better for us to withdraw the old paper, relay, and proceed.

Mr Dafeamekpor: Mr Speaker, first of all, it is a procedural impropriety for us to consider a Bill, bring a Report with amendments, and say that we are going to relay afresh. That is not what we do. The intendment of this House is that when a mandate is given to a Committee to consider an Instrument or a Bill, we ought to bring a report. A report was brought with some amendments, and in the wisdom of the House and the Speaker, the Winnowing Committee ought to go and do winnowing, as the term suggests. It was exactly what we did.

In doing the winnowing, we need to advertise what we are seeking to winnow, take the chaff away, and leave the grain. That is why in advertising what we are taking away, we have advertised what we are deleting and leaving the

grains. The Minority Leader has not been here for some time. For about two to three weeks, he has not been here.

Mr Second Deputy Speaker: It still does not matter. Let us move on. Clause 22, any proposed amendment?

Mr S. Mahama: Yes.

Mr Speaker, subclause (4), *delete*. So, we would have Subclause 1 to 3.

I so move.

Mr Second Deputy Speaker: Hon Members, the proposed amendment is to *delete* subclause 4, so that we would have subclause 1 to 3.

Question put and amendment agreed to.

Mr Anyimadu-Antwi: Mr Speaker, I am saying this and I am saying it for the last time. On the point that was just raised by the Minority Leader, at least, when they were talking about seniority, I am Senior to them, whether in the House or at the Bar. Mr Speaker, what I have said earlier is that there is a Bill that has been laid in this House, and they are trying to confuse the Chairperson and the Speaker. The fact is that if you look at Order 68, the issues that have been trashed out, we may not consider them. That is the purpose of winnowing. But so far as we are concerned, it is the Bill that has been laid in this House that we must deal with, not the new guide, which should be a guide. We should not make reference to this incorporated document.

The Chairperson can at best move his amendment in accordance with the Bill that is laid in this House, and then can refer us to the incorporated Act, as incorporated like this. But to say, and the Speaker to accept, that the incorporated one is what we are dealing with, I beg to differ. I think we are wrong. So, without pushing the argument that we do not have to withdraw or relay, I plead with the Chairperson to go by the Bill that is laid in this House, and then he can make reference for us to understand it the easy way and flow along. Then he can point to the incorporated one, as the new rendition would be, as referred to at this clause. Then we quote it and go.

In this Chamber, we have done a Bill, it has gone to court, and people have challenged it, and they said that we never debated it, let alone debating a different document. Thank you.

Mr Ayariga: Mr Speaker, we have three documents before us, not two. We have the Legal Education Reform Bill, which is the original Bill that came before us. We have the Legal Education Bill, and then we have the *Order Paper*. Those are three documents. What the Chairperson does is to rise up any time that we are on an item on the *Order Paper*. That is what I have observed. So, the understanding is that when the Chairperson rises, he moves the amendment as captured in the *Order Paper*. When he moves the amendment as captured in the *Order Paper*, instead of going back to the original, to try to insert in the original how the rendition should sound like now, we ask him to go and incorporate the amendments. And it

is the incorporated document that is the third document.

So, he moves the amendment as captured in the *Order Paper*. If they have the original, fine, they can take the original. They can try to insert it themselves and see how the new rendition is. But to make it easy, the Chairperson gets up and then he now reads the new rendition for ease of understanding. That is what is happening. So, it is making it easy for us. But imagine if, let us say that — and that is why we printed the incorporated document and shared to everybody interested in participating, to make it easy. So when we now want to even make a further amendment, it is easier because we have the new rendition, which captures the intended amendments of the Chairperson. It makes it easy for us to make a further amendment. That is why a lot of our Colleagues are able to make further amendments. Otherwise, it would have been very cumbersome.

Now, he talked about withdrawing and relaying. Mr Speaker, before he travelled, he organised a big press conference in this country, and said that this Government has been passing Bills under a certificate of urgency and that we have been abusing the certificate of urgency. It is to respond to him that we took a decision not to withdraw a Bill and relay. When we withdraw and relay, then we would take it through a certificate of urgency because the work has been done.

So, under this arrangement, one, we allow the new Members to sit and

observe. It is a bit laborious, but in the process, they are learning. I can see that a lot of the Backbenchers have picked up the skills quickly, and they are participating effectively. We encourage that.

7:54 p.m.

So, the culture of withdrawing Bills when they go to Committees, and then, coming to relay a withdrawn Bill, and then we rush through the Bill without going through the details, it does not help for training the younger Members of the House.

So, Mr Speaker, let us just continue along those lines. Our target has been to do 20 clauses a day, and if we all just bear with the Chairperson of the Committee and assist, we can finish the 20 clauses, and then we can adjourn.

Mr Second Deputy Speaker: Thank you very much. Hon Members, we have already effected clause 25 amendment, so—

Osahen Afenyo-Markin: Mr Speaker, if we pay due regard to clause 25, (2), dealing with consideration of application, we realise that in 25(1), there is a provision, quote”

“(1) The Council shall, on receipt of an application for accreditation, constitute a committee to conduct evaluation of the university that seeks to offer or provide Law Practice Training.

(2) The committee constituted under subsection (1) shall...”

Its responsibility is outlined. But, Mr Speaker, we do not have to legislate in absurdity. We do not have to legislate without providing clarity. This committee that we refer to, to be constituted, how would it be composed? I think, as legislators, we should define and give a complete breakdown of how this committee would be composed and constituted.

Mr Speaker, in view of that, I would want to move that we *insert* a new subclause 1(b) that would state that;

“the committee constituted under subclause 1 shall consist of:

(a) a chairperson,

(b) no less than six other members appointed by the council, and membership shall include at least one representative of the Judiciary, one representative of the Ghana Bar Association, though now they are now introducing some other thing. Ghana Bar Association, one person in academia in legal education of no less than the rank of senior lecturer, one representative of the Ghana Treasury Education Commission, and one person with expertise in quality assurance in higher education.”

Mr Speaker, I am of the view that considering the work that has to be done in this whole legislation, this is such an important committee because it is the committee that would consider application for consideration, and that the composition of that committee would be at the heart of the work of this institution to be created.

So, Mr Speaker, without more, I would want to rely on the proposed composition and want to invite Members to make their own input. If there is none, then we would keep it as it is. But, there is an obvious opposition that will come because somebody has managed to get a certain law, something. I do not even know. But as far as I know, we have Ghana Bar Association. You know, as far as I know, Ghana Bar Association.

Mr Second Deputy Speaker: Yes, let me listen to the Attorney-General and Minister for Justice.

Dr Ayine: Thank you, Mr Speaker. Mr Speaker, if we look at the tenure of the provision in question, this is a committee of the Council. It is like saying that we set up the board of a state agency and then the committees of the agency, we name the membership ahead. I think these are ad hoc committees that are formed for specific duty. So, I do not think that it is proper to name the membership of the committee, that is, to constitute the committee for the council. We should leave that to the council itself from time to time to set up that committee for the purpose of carrying out the duty of accreditation.

Osahen Afenyo-Markin: Mr Speaker, I do not think that, and with greatest deference to my respected senior and professor, it would be proper to make this an ad hoc committee. Let us legislate on it. Let us bring clarity because, in establishing this legal entity, their main work, with all the things we are saying, they are there to give accreditation. That is all that we are saying, to give accreditation to various universities. Of course, but you deal with the fundamentals first. You cannot place something on nothing. It will fall. So, if you are able to get the infrastructure right, you are able to now rely on same to maintain standards.

Mr Speaker, it is not the right way to proceed if we say there should be an ad hoc committee of the Council. The committee to do the whole work of considering application must be clearly defined in the enactment. It is not one of those ad hoc committees that must be set up at the pleasure of the Council, no. They are there to do a fundamental work, accreditation, consideration of applications. So, if an important committee like this, we do not to have legislate on who should be on it, someone with quality assurance expertise in higher education, a representative in academia in the area of legal education, a representative from Ghana Tertiary Education Commission, a representative from the Judiciary—

Mr Second Deputy Speaker: So, are you proposing them?

Osahen Afenyo-Markin: Yes, Mr Speaker. I have outlined them. It is in the

Order Paper Addendum. My proposed amendment is advertised.

Mr Second Deputy Speaker: So, proposed amendment. Hon Members, in order for us to move faster, he is proposing an additional subclause. So, I will ask him to come out with the rendition again.

Osahen Afenyo-Markin: It is there.

Mr Second Deputy Speaker: Very well. Hon Majority Leader, let me hear from you, so, if I need to put the question then we move.

Mr Ayariga: Mr Speaker, I think that what he has said is a very sound issue. But it is important to understand the new structure. What he is talking about is now the function of the Council. So, if you go to clause 4, you will see that the Council as constituted reflects these interest groups that he is proposing to make up the committee. So, we will see that the Governing Council has one retired justice of the Supreme Court or a person who qualifies to be appointed as a justice of the Supreme Court, three representatives of the Judiciary, one of whom is from a lower bench, nominated by the chief justice, one representative of the Attorney-General and Minister for Justice, three representatives of the bar, one representative of the Ministry for Education, then the Ghana Tertiary Education Commission, and three persons who teach law in accredited universities nominated by the Conference of Law Deans. This Council is responsible for the licensing job. So, they will form the committee. The committee

will obviously be drawn out of these same people. And so, it will be creating another institution within the Council if we now go and say that there must be a committee that is made up of all that because—

8:04 p.m.

Osahen Afenyo-Markin: Mr Speaker, we learn from each other. That clarity being provided, I think then that to make it simpler, the committee be drawn from membership of the council. *[Interruption]* No, what is there does not say so. Mr Speaker, we practise in the courts and we know the challenges we face. So, when we are here and we are making certain suggestions, we know what we are saying, with respect. For the better part of me, I have been in the courts. I am a courtroom practitioner. No, I am not saying anything or talking about — I am making an absolute statement. Mr Speaker, it is like a businessman sitting in this Chamber, a law is being passed on certain entrepreneurial activities and you sit unconcerned. You face it in your daily life. I know the difficulties I faced in our courts. In practice, when the judges say this is what Parliament enacted, some judges will say I will not go further; this is what they say.

And so let us bring as much clarity to what we are doing. So, I agree with my respected Senior, the learned Leader of the House, that it would be superfluous to restate membership because they have already been provided for under clause (4). If so, I am aligning with that view

and I think therefore that we should say that the council shall on receipt of application for accreditation constitute a committee from among members of the Council. *[Interruption]* No, it cannot be implied. We cannot continue to move on the part of it is implied.

From what Hon Ayariga has said, which I agree, we should bring clarity to it that the committee to be constituted shall be from among members of the council then we will be doing justice to the matter. Otherwise, because it is an ad hoc committee, the Council or the Director General can decide to constitute whatever they desire. So, it is not—If you say an ad hoc committee, the Director General can choose to bring anybody on board without any restriction. So let us insist that that committee must be drawn from the membership of the Council so that it does not become ad hoc but it becomes a standing committee drawn from the membership. That is fine. Then we rest the matter so that there is—

I move therefore, Mr Speaker that, “the Council shall on receipt of an application for accreditation constitute a committee drawn out of the membership of the Council to conduct an evaluation of the university that seeks to offer or provide a Law Practice Training” so that we do not go outside of the council membership. If that is the argument, I will buy into that.

Mr Second Deputy Speaker: Yes, let me listen to the Attorney-General and Minister for Justice.

Dr Ayine: Mr Speaker, I do not dispute the soundness of what the Minority Leader has proposed. The only problem is that it is too restrictive and it means that at any point in time that the Council wants to draw upon expertise from outside its membership, it cannot do so because of the rendition that the Hon Minority Leader is proposing. So, we can say that the totality of expertise for the assignment that we are going to give to the committee is limited to only the Council members. So that is a restriction that I fear should not be placed on the committee.

Osahen Afenyo-Markin: Learned Attorney-General and Minister for Justice, one key thing to observe in legislation is certainty. When we do not bring certainty in an enactment, we create problems for ourselves. This whole Bill on legal education is seeking to expand the various facilities or various avenues for legal training. And we say that to ensure standard, accreditation is key. You must meet certain conditions. Now, the committee to do this work is very fundamental. So, if the learned Attorney-General and Minister for Justice is inviting us to agree to a certain position that there will be the need for some experts. Who are these experts? Who are the “some experts”? Let us ensure clarity at this point. Because the learned Majority Leader was making an important point to the effect that already if we look at the Council composition, it takes care of various aspects and there is a whole list. Therefore, my argument that we should look at a new list, which would even include an expert on quality assurance, should be abandoned and

rather draw them from the Council membership. Now, the Attorney-General and Minister for Justice is also introducing a new dimension that the Director General may need some experts from other quarters who are not Council members. Then let us define it to avoid absurdity.

Mr Dafeamekpor: Under the board at clause 9, we give them the mandate to establish committees consisting of members of the board, as well as non-members. We can do so for the council to take care of this problem. So that when the Council receives applications for consideration, they can actually set up a committee. So, we can borrow the rendition under clause 9 and make it a sub (3) of clause 4 under the Council then it cures the mischief.

Osahen Afenyo-Markin: Mr Speaker, I do not want this committee to be an ad hoc committee. It must be a standing committee. Of all the work of this institution, it is this part that is fundamental so we do not have to make a mistake on this one. *[Interruption]* No, the clause 9 the Hon Member has referred to, talking about establishing committees of members and non-members, those are ad hoc with respect. Those are ad hoc committees that the Director General may want to set up. It may be a procurement committee. *[Interruption]* Respectfully, my respected classmate and study mate, hear me out. This committee performs a fundamental job. We must not create any absurdity around its composition. We must ensure certainty as to who and who constitute that committee for the purposes of

accreditation. Otherwise, we know it will be who you know. There will be *kokofu* football.

Mr Second Deputy Speaker: Hon Minority Leader, make the so-called proposed amendment you want so that we can vote on it and move on.

Osahen Afenyo-Markin: Exactly. It should be drawn from the membership of the Council. It is fine. It helps all of us. When you heard me, see the way you have enriched it. Even your language is richer than what I initially proposed.

Mr Second Deputy Speaker: So, let us hear you with the proposal.

Osahen Afenyo-Markin: Yes, Mr Speaker, from what my respected classmate said, the new subclause is that *[Pause]* The new rendition will be;

“The Council shall, on receipt of an application for accreditation, constitute an accreditation committee, which composition shall be drawn from the membership of Council to conduct an evaluation—*[Interruption]*”

8:14 p.m.

Mr Second Deputy Speaker: So, Hon Members—

Osahen Afenyo-Markin: Mr Speaker, the accreditation committee can always co-opt others to assist them in their work. I do not have a problem with that.

Mr Second Deputy Speaker: So, Mr Chairperson, if it is the pleasure of the House, I will put the Question.

Osahen Afenyo-Markin: Mr Speaker, we have agreed.

Mr Speaker, on this, the agreement is that the accreditation committee would have the power to co-opt. Then we would take into consideration what the learned Attorney-General and Minister for Justice has said, and then we also know that they are drawn from the membership of the Council.

Mr Second Deputy Speaker: Very well. So, I hope the drafters heard the Hon Minority Leader. Let us try and capture that.

Dr A. K. T. Mahama: Mr Speaker, it is a minor amendment, but I think it is important we just correct it. I am proposing that we *delete* “of applicant” in clause 25(2)(a) and *insert* “university”.

Mr Speaker, the new rendition would then read:

“The Committee consider under subsection (1) shall review the documents submitted by the university and any other document”.

Mr Speaker, I am making this point because we need to have consistency. In some cases, we use “university”, and in other cases we use “applicant”. I think that we should replace it with “university” for clarity because in clause 26, we are using “university.”

So, that is my proposal.

Mr Second Deputy Speaker: Yes, Leader?

Mr Ayariga: No, I think it is important to maintain the team of applicants, because the subtitle is “consideration of application”. Then clause 26(1) says,

“The Council shall, on receipt of an application for accreditation...”

So, it is better to maintain “applicant”.

Clause 25 as amended ordered to stand part of the Bill.

Clause 26 — Issue of provisional accreditation licence

Mr S. Mahama: Mr Speaker, clause 26, amendment proposed, subclause 2, opening phrase, line 1, after “licence” *insert* “...which is valid for two years.”

Mr Speaker, the new rendition will be,

“The Council shall issue a provisional accreditation licence which is valid for two years in the prescribed form to, valid for two years in the prescribed form to a university, if

1. (a) the university is satisfied that it is in substantial compliance with the standards of accreditation set by the council,

(b) the university is suitable and competent to offer or provide law practice training, and

2. the university presents a plan for bringing the university into full compliance with the standards within two years after the issue of the provisional accreditation and indicates the specific actions that the university intends to take to bring the university into full compliance with the standards and the manner in which the plans will be executed.
3. Therefore, the council shall specify in the provisional accreditation licence;
 - (a) the law programme which the university may offer,
 - (b) other terms and conditions that the council considers necessary.”

I so move, Mr Speaker.

Mr Second Deputy Speaker: Yes, that is the proposed amendment from the Chairperson.

Yes, Hon Member for Offinso North?

Dr F. K. Asamoah: Mr Speaker, having sat on the GTEC Board and the accreditation committee for four years, we realise that this provisional accreditation is basically what we call the Preparatory Certificate, and the two years is quite short. The standard has been three years, and normally the full accreditation is five years. So, I want to propose to the Chairperson of the

Committee, to consider three years and amend it further to state “which is valid for three years, and within three years.”

I so submit.

Mr Second Deputy Speaker: Very well. So that is his proposal, that instead of two years, we make it three years.

Mr S. Mahama: Mr Speaker, the gravamen of the application is to get a full certification. Why would they be holding provisional certification for three years? It should make an effort to get it as quickly as possible. So, we should rather even abridge it. You have applied for a full certification, and you leave it for three years, because you hold the provisional one. You want the people because you are training students, and you want them to get a full accreditation so that they can churn out as students. Remember, it is a two-year programme, and if you extend the provisional licence to only three years, you will overlap a whole cycle of a student's stay in the school. So, the provisional should be shorter and not longer. So, I think that the two years is good for the universities.

Mr Second Deputy Speaker: Yes, Hon Leader?

Osahen Afenyo-Markin: Mr Speaker, I want to attempt an enriched language as Hon Dafeamekpor earlier assisted in my earlier amendment.

Mr Speaker, the provision that we are considering, I propose that we should instead have this rendition.

“A provisional accreditation licence shall be valid for a period not exceeding two academic years from the date of issue.”

We are talking about a language in the academic space. We do not use two years in that environment. We say academic years.

So, Mr Speaker, that can be done. That said, after we have enriched the (1), I would now want to propose a new subclause which would come under subclause 1(b) as advertised, which reads:

“Where a university fails to obtain a full accreditation licence before the expiration of the provisional accreditation licence, the Council shall put in place transitional arrangements to safeguard the academic interest of students enrolled under the provisional licence, including permitting such students to complete their programme at the university within a specified period of facilitating their transfer to an accredited institution.” will come, which will come under subclause (1)(b), the (1)(b). It will read, where a university fails to obtain a full accreditation licence before the expiration.

8:24 p.m.

Mr Speaker, let me pick it from the last end. A university is granted provisional accreditation to start a programme. Students have pursued their programmes based on the accreditation. But, before the expiration or just as the accreditation expires, they are unable to

meet the requirements. Someone has studied for one year with results. There must be a transitional arrangement that would allow for that student to transfer to continue his legal education in another institution through where there is no fault of his but the institution that he started his programme has not been able to meet the accreditation requirement to enable him to continue. Such a student may be put in harm's way through no fault of his. This provision deals with it.

Second, to allow for the process, the period between which one is putting in place measures to get full accreditation, we cannot allow any lacuna in there. This provision also deals with that so that Council will be guided accordingly to allow the transition.

Thank you.

Mr Dafeamekpor: Mr Speaker, indeed, about four years ago, the Wisconsin University, students who had gone through training with the university and obtained their LLB, their matter came before Parliament—May we have the attention Hon Anyimadu-Antwi; he was Chairperson of the Committee then. When the matter came before us, we had to advise the General Legal Council (GLC) via the Board for Legal Education to remedy that situation by accepting the products from Wisconsin University who had graduated before the accreditation was withdrawn. The GLC withdrew their accreditation because of some lapses or inadequacies. When we advised in Parliament, they went back and allowed those group of students to participate in the entrance exams to enter

the Law School. So this is a live matter. It happened.

I believe that the proposal from the Hon Minority Leader is a good one. It will give some opportunity for the Council to take remedial measures to deal with students who may be victims of such circumstances. I believe that it is an opportune amendment.

Mr Second Deputy Speaker: Hon Members, if it is the pleasure of the House, then I will put the Question.

Mr Ayariga: I think mine is a minor one. When we say academic year, how do we define academic year? Academic year is, I believe, a term of art in academia describing a period relative to an academic programme. I think the intention of the sponsors of the Bill is a 24-month period, which is two years. If we introduce the word “academic”, and I go and draw up my own academic programme which straddles beyond two years, then I come and argue that my academic year is one and a half years. It started in this period and that kind of thing—

I think the idea is 24 calendar months, which is two years. So, let us keep it at the two years. Otherwise, we would have to go to the interpretation section to now attempt to define an academic year. That alone can send us to the Supreme Court for interpretation. Let us keep it at twenty-four months, which is two years. Do not confuse it with the insertion of the word “academic”.

Mr Second Deputy Speaker: Hon Members, I wanted us to deal with the Hon Minority Leader’s proposal. He

made two proposals. One has been shot down by the Hon Majority Leader, if I may say so. But the second amended that he made about transfer of students to accredited universities, I think that one is sound. I think if it is agreed, then the draftsman may deal with it.

Yes, Attorney-General and Minister for Justice?

Dr Ayine: Mr Speaker, I just wanted to make something very clear. The purpose of the accreditation is not to deal with the Tier 1 programme, which is the LLB. The purpose of the accreditation is to licence the university to run the law practice training programme. When we say the students be transferred, are we saying that they should be transferred to complete their LLB in an accredited university, or they should be transferred to do the law practice course in an accredited university? That has to be made clear, because the purpose of the accreditation is not to run the LLB programme.

Osahen Afenyo-Markin: Mr Speaker, we are in agreement. I think the draftsman would clarify that one.

On the issue raised by the respected Leader of Government Business, I think because we are in the space of academia, there is that general presumption that in academia, when we talk about a year, we are referring to the academic year. But, I do not think I have to belabour the point. Mr Speaker, if the Hon Member thinks that we should use an ordinary man’s language, two years, instead of—
[Interruption]

Mr Speaker, suffice it to say that in all the laws we have passed on the tertiary institutions we have, we have been very consistent on the use of academic year. I know that the Hon Majority Leader is very charitable, unless he chooses not to be charitable. Let us maintain the academic year. But if he wants us to maintain the two years open, it is fine. I do not want us to belabour it.

Mr Second Deputy Speaker: Very well. Draftspersons, I hope you have taken care of the transfer.

Osahen Afenyo-Markin: Mr Speaker, while we are at this, I think that let us buy into the suggestion by the Hon Majority Leader and maintain the years. However, let us tinker with it. Why two years? Why not make it three years open—the provisional? Let us look at it. Instead of two years, I suggest that we take away the academic years as the Hon Majority Leader is saying, and then instead of the two, we should make the provisional accreditation period to three years. I think three years is standard. That is my humble view so that we take away the “academic year”.

Mr Second Deputy Speaker: I think that issue was raised by Dr Kabiru Mahama, and we have already—

Osahen Afenyo-Markin: Mr Speaker, that was Mr Kyei Asamoah.

8:34 p.m.

Mr S. Mahama: Hon Minority Leader, I have said that the purpose of

applying for this licence is for full accreditation. They only give the institution the provisional and study certain things that they must put in place. Why do we want them to extend it to three years? It is in their interest to get full accreditation to run your programme.

So, once they give the provisional licence, it serves as a stopgap to say that they have one, two or three things to satisfy, then we will give them accreditation. Once final certification is given, it is renewable for every five years. So, they must strive to attain full accreditation. Provision should not be —
[Interruption]

Osahen Afenyo-Markin: Mr Speaker, I think the Chairperson has made a point. If the final certification is for five years, renewable, then provisional is three. The final certification, I am told, is every five years.

Mr Second Deputy Speaker: It is renewable every five years.

Osahen Afenyo-Markin: Let us go with the two years provisional.

Mr Dafeamekpor: Mr Speaker, we are saying that upon the issuance of the provisional accreditation licence, they must take steps within some months to put into effect the substantive application for full accreditation. So, if there are some inadequacies, it would have been dealt with before the time for expiration of the provisional licence.

Question put and amendment agreed to.

Clause 26 as amended ordered to stand part of the Bill.

Mr Second Deputy Speaker: We are dealing up to clause 30, then we close for the day.

Clause 27 — Application for full accreditation licence.

Mr Second Deputy Speaker: So, it means clause 27 appears in the original text as clause 24. Is that the case? Very well. Yes, Chairperson, let us hear you.

Mr S. Mahama: Mr Speaker, I am just trying to redo this here as Clause 24.

Amendment proposed — *Delete and insert* the following:

Application for full accreditation licence

(1) A university that is issued with a provisional accreditation licence shall, within two years after the issue of the provisional accreditation licence, apply for a full accreditation licence from the Council.

(2) An application for a full accreditation licence under subsection (1) shall be made to the Council

(a) not earlier than a year and half; and

(b) not later than two years after the issue of a provisional accreditation licence.

(3) An application under subsection (2) shall be accompanied with

(a) a copy of the provisional accreditation licence of the university;

(b) information on

(i) the administrative structure of the university; and

(ii) the curriculum and teaching methodology of the university;

(c) evidence of compliance with the standards set by the Council; and

(d) the prescribed fee.”.

as captured under page 13, on today’s Order Paper. I so move,

Mr Second Deputy Speaker: Mr Chairperson, hold on. When you say it is captured under clause —let us get the clarity.

Mr S. Mahama: Mr Speaker, clause 24 on the Order Paper, and that is clause 27 of the amended version of the Bill.

Mr Second Deputy Speaker: The Chairperson has made the proposed amendment as captured on page 12, clause 24, the item numbered 24(x). Is that not the case? Do you have anything contrary?

Dr F. K. Asamoah: Thank you very much, Mr Speaker. The Majority Chief Whip talked about starting the full accreditation within months. But when we come to clause 27(2) (a), it says “not earlier than a year and a half, and not later than two years”. So, I am proposing that (a) be changed to “not earlier than a year” instead of “a year and a half, and not more than two years”.

Mr S. Mahama: Yes, Mr Speaker, it is not fatal.

Osahen Afenyo-Markin: Mr Speaker, line three, “an application for accreditation licence under subsection one shall be made to the council”. Mr Speaker, I propose that we insert:

“...and the council shall grant a full accreditation licence only where the university demonstrates compliance with all prescribed standards of infrastructure, staffing, curriculum, student support systems and governance requirements as determined and published by council.

That is my proposal. I will not belabour this. It answers the question. “and the council shall grant the full accreditation in accordance with” — he said “in accordance with set standards”. Mr Speaker, I will buy it.

Mr Second Deputy Speaker: I will come to you. Hon Fred Kyei Asamoah, may you put up your rendition again, so that I put the question on it.

Dr F. K. Asamoah: Mr Speaker, I propose that we amend clause 27(2) (a) to read “not earlier than a year”. So, *delete* “and a half”.

Osahen Afenyo-Markin: Mr Speaker, we have to help our children to use the terminology in a manner that will help the future of this Parliament. So, Mr Speaker, I am going to guide him. Normally, when we want to *delete* something, we say after the particular word, ‘*delete*’, then we follow the other one. Then we now launch into the new rendition and say ‘the new rendition shall read’. I learned it from Hon Anyimadu-Antwi and Hon Joe Ghartey, so I am teaching him today. He will also teach somebody tomorrow. So, he should do that. After “a year”, he should remove the “half”. He has done the right thing, but I want him to use the legislative language.

Dr F. K. Asamoah: In clause 27(2) (a), after “a year”, *delete* “and a half”. The new rendition now reads, “not earlier than a year”, I so propose.

Question put and amendment agreed to.

Mr Second Deputy Speaker: Now, let me come to what the Minority Leader just said.

Osahen Afenyo-Markin: “And the Council shall grant a full accreditation licence in accordance with set standards”. Mr Speaker, I would accept that. It answers the question. So, we will stay there. Yes, we maintain set standards so the draftsman can look at it.

Mr Second Deputy Speaker: Yes, Hon Attorney-General and Minister for Justice?

8:44 p.m.

Mr Second Deputy Speaker: Yes, Hon Attorney General and Minister for Justice?

Dr Ayine: Mr Speaker, I think the Hon Minority Leader is running ahead of all of us. Because clause 28 deals with the consideration of the application for a full accreditation licence.

Question put and amendment agreed to.

Clause 27 as amended ordered to stand part of the Bill.

Mr Second Deputy Speaker: Now, we would move to clause 28.

Clause 28 — Consideration of application for full accreditation licence

Mr S. Mahama: Mr Speaker, you will note from the *Order Paper* that that reads clause 25, that is xi, we are *deleting* the entire clause.

Mr Second Deputy Speaker: Very well. Hon Members, Clause 25—

Mr Dafeamekpor: Mr Speaker, let us draw the curtains down at this point, on Clause 27. Tomorrow, we will come and start with Clause 28; Clause 24 of the original Bill. So, Mr Speaker, tomorrow, we will come and continue.

Mr Second Deputy Speaker: Very well. Hon Members, I think we have spent more than five hours. We have brought the Consideration Stage to a close.

Hon Members, we spent more than the required hours, five hours. Therefore, if Leadership in the House will indulge me, I will proceed to adjourn the House.

Mr Dafeamekpor: Mr Speaker, that is so. We are entirely in your hands.

Osahen Afenyo-Markin: Mr Speaker, we are in agreement with the Majority Side that, indeed, we are in your hands. But just a short application through you to the Majority Leader.

Mr Speaker, this morning, when he read a Statement on behalf of the Minister for Finance on this cocoa matter, he indicated that the Minister for Finance will be in this House tomorrow.

I am just using this opportunity to plead with him to ensure that the Minister for Finance comes to the House of Parliament to further discuss this matter. Mr Speaker, cocoa farmers in this country need to be paid. They cannot accept a haircut, and whatever policy the Government has, this is the right place to discuss it. So, Mr Speaker, it is a prayer to the Majority Leader to ensure that the Minister for Finance comes to the House of Parliament. He cannot be using the press to announce Government Policy. He makes an announcement in his office. He is a Member of Parliament; he must come to the Chamber. Mr Speaker, the

Minister for Finance must come here for us to interrogate that Cabinet decision.

Mr Speaker, we cannot abandon the cocoa farmers of this country. They take away GHC1,000 from their earnings. I need the Majority Leader to assure this House that he will bring his Minister for Finance. He is the first among his equals in Cabinet. This is a very serious national issue. The Minister for Finance must come here; he cannot live in the comfort of his office and make announcements and leave the House of Parliament.

Mr Ayariga: Mr Speaker, I can understand that the NPP does not have any political message for Ghanaians, and they are hoping to resuscitate their politics using cocoa farmers. But that will not work. Mr Speaker, what the Minority Leader is doing is a clear indication that today's attempt to use cocoa farmers to do politics failed. So, he wants a second chance. Because if he had succeeded, he would not be looking for a second opportunity. But he has already made a Statement, we have copiously debated the Statement, and there is nothing more that the Minister for Finance can come and add. So, let us leave it there.

As for Government Policy, it can be announced anywhere. Once they are approved by Cabinet, the Minister for Communication announces them. In this instance, because it is under the Ministry of Finance, that was why the Minister for Finance announced the Policy. So, I do not think that the Minister for Finance will have to come here to answer Questions, make Statements or provide

any clarification. If he wanted, he could have asked a Question. But he opted to come and make a Statement and I used the opportunity to read the Statement of the Minister for Finance.

The Policy you complained about was announced in the world without being captured in the *Hansard*. Today, I made sure it is captured in the *Hansard*. I thank him for giving me the opportunity. In the future, anybody conducting research on this matter will have the benefit of reading in the *Hansard* what the Minister for Finance said outside this House.

Thank you very much for the opportunity. [*Hear! Hear!*]

Mr Second Deputy Speaker: And thank you to all of you —

Osahen Afenyo-Markin: Mr Speaker, you come from a cocoa-growing area. Your constituents are watching you and how you allowed space to allow this matter. Mr Speaker, this is a House of Parliament. A platform of the people's representatives. This is where we discuss national issues. Mr Speaker, the Majority Leader is telling the country that Government Policy can be announced anywhere and the Minister for Finance is not obliged to come to the House of Parliament.

Mr Speaker, the cocoa farmers in the Volta Region, Ashanti Region, Bono Region, and Western North Region have been denied their earnings. If the Majority Leader will not bring the

Minister for Finance, we, the Minority, will use the appropriate laws available to us to summon the Minister for Finance. We will not abandon the cocoa farmers.

ADJOURNMENT

The House was adjourned at 8:59 p.m. till Wednesday, 18th February, 2026, at 2:00 p.m.

Editor's Note

This *Official Report* was adopted by the House on 24th February, 2026.